

Transcript of the Testimony of **Kody Goodman - TPR Hearing**

Date: June 27, 2023

Volume:

Case: In the Matter of Kody Corinthians Goodman

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IN THE JUVENILE COURT OF JASPER COUNTY
STATE OF MISSOURI

IN THE MATTER OF TRACE ROYAL ALTON,
Case No. 22AO-JU00287

IN THE MATTER OF KODY CORINTHIANS GOODMAN,
Case No. 22AO-JU00288

TERMINATION OF PARENTAL RIGHTS HEARING

BEFORE THE HONORABLE ANGELA AUSTIN VORHEES

Taken on Tuesday, June 27, 2023, from 10:03 a.m. to 3:24
p.m., at the Juvenile Justice Center, in the City of
Joplin, County of Jasper, State of Missouri, before

SHARON K. ROGERS, CCR-650,

a Certified Court Reporter and a Notary Public within and
for the County of Jasper, and State of Missouri.

1 APPEARANCES

2 FOR THE PETITIONERS:
3 MS. LINDSEY R. DRAKE
4

5 GUARDIAN AD LITEM:

6 MS. TRICIA A. GOULD
7
8

9 FOR THE JUVENILE OFFICE:

10 MS. BELINDA KADERLY
11
12
13

14 FOR NATURAL MOTHER:

15 MS. LAUREN E. ROWDEN
16
17
18

19 FOR NATURAL FATHER:

20 MR. SPELLMAN P. ROBERTSON
21
22
23
24
25

1	E X H I B I T S	
2	Exhibit Number #1	11
	(Petition - Trace)	
3	Exhibit Number #2	11
	(Findings - Trace)	
4	Exhibit Number #3	11
	(Findings, Judgment, Jurisdiction - Trace)	
5	Exhibit Number #4	11
	(Motion to Modify - Trace)	
6	Exhibit Number #5	11
	(Findings, Judgment, Order - Trace)	
7	Exhibit Number #6	11
	(Amended Findings - Trace)	
8	Exhibit Number #7	11
	(Findings, Judgment, Order - Trace)	
9	Exhibit Number #8	11
	(Findings, Judgment, Order - Trace)	
10	Exhibit Number #9	11
	(Petition - Kody)	
11	Exhibit Number #10	11
	(Findings - Kody)	
12	Exhibit Number #11	11
	(Amended Petition - Kody)	
13	Exhibit Number #12	11
	(Findings, Judgment, Order - Kody)	
14	Exhibit Number #13	11
	(Motion to Modify - Kody)	
15	Exhibit Number #14	11
16	(Findings, Judgment, Order - Kody)	
17	Exhibit Number #15	11
	(Amended Findings - Kody)	
18	Exhibit Number #16	11
19	(Findings, Judgment, Order - Kody)	
20	Exhibit Number #17	(Findings, Judgment, Order - Kody)
21	Exhibit Number #18	94
	(Ozark Center Progress Note)	
22	Exhibit Number #19	94
	(New Directions Group Log)	
23	Exhibit Number #20	21
	(Dawndee - Drug Screen Results)	
24	Exhibit Number #21A	79
	(Investigation and Social Summary - Trace)	
25	Exhibit Number #21B	79
	(Investigation and Social Summary - Kody)	
26		

1 I N D E X

2

WITNESS - JENNIFER EMMONS

3

4 DIRECT EXAMINATION BY MS. DRAKE . . . 6
5 CROSS-EXAMINATION BY MR. ROBERTSON . . . 36
6 CROSS-EXAMINATION BY MS. ROWDEN . . . 41
7 CROSS-EXAMINATION BY MS. KADERLY . . . 47

6

WITNESS - SHANIA RILEY

7

8 DIRECT EXAMINATION BY MS. DRAKE . . . 53
9 CROSS-EXAMINATION BY MR. ROBERTSON . . . 81
10 CROSS-EXAMINATION BY MS. ROWDEN . . . 85
11 REDIRECT EXAMINATION BY MS. DRAKE . . . 93
12 RECROSS-EXAMINATION BY MS. ROWDEN . . . 98

10

11 WITNESS - MATTHEW PRESTON GOODMAN

12 DIRECT EXAMINATION BY MR. ROBERTSON . . . 100
13 CROSS-EXAMINATION BY MS. DRAKE . . . 106

13

14 WITNESS - DAWNDEE RENEE ALTON

15 DIRECT EXAMINATION BY MS. ROWDEN . . . 113
16 CROSS-EXAMINATION BY MS. DRAKE . . . 121

16

17

18

19

20

21

22 (sic) - typed as spoken

23 (ph.) - phonetic

24

25

1 BY THE COURT: We are on record in
2 22AO-JU00287 in the matter of Trace Alton,
3 and 22AO-JU00288 in the matter of Kody
4 Goodman. With us this morning are - let's
5 see, we have counsel for Petitioners, Lindsey
6 Drake. We have Tricia Gould, she is Guardian
7 Ad Litem for both child - both children.
8 Belinda Kaderly appears on behalf of the
9 Juvenile Office. They are a party to this
10 matter. Lauren Rowden appears with Dawndee
11 Alton, who is identified as the Natural
12 Mother to both children. Natural Father to
13 Kody, Matthew Goodman, appears in person and
14 with his attorney, Spellman Robertson. We
15 also have Jennifer Emmons as well as Shania
16 Riley here on behalf of Jasper County
17 Children's Division, who has been formally
18 served and has filed an answer. Ms. Emmons,
19 just for recordkeeping purposes, you do not
20 appear with formal counsel this morning, and
21 you are comfortable proceeding without them,
22 is that correct?

23 BY MS. EMMONS: Yes.

24 BY THE COURT: All right. CASA has
25 been appointed to both children in the

1 underlying file. They appear with us this
2 morning as well. I think I have everybody.
3 We are scheduled for a hearing on Termination
4 of Parental Rights. And so, Ms. Drake, on
5 behalf of petitioners, you may proceed.

6 BY MS. DRAKE: Thank you, Your Honor.
7 Petitioners will call Jennifer Emmons.

8 BY THE COURT: All right. Ms.
9 Emmons, if you would raise your right hand.

10 (WITNESS SWORN)

11 BY THE COURT: And since we have a
12 court reporter today, would you say and spell
13 your first and last names for her, please?

14 BY THE WITNESS: My name is Jennifer
15 Emmons. J-E-N-N-I-F-E-R. E-M-M-O-N-S.

16 BY THE COURT: Thank you. Ms. Drake,
17 you may proceed.

18 BY MS. DRAKE: Thank you.

19 JENNIFER EMMONS

20 Having been first duly sworn and examined,
21 testified as follows:

22 DIRECT EXAMINATION BY MS. DRAKE:

23 Q. Jennifer, is it true that you are employed by
24 the Children's Division?

25 A. Yes.

1 Q. And is it pursuant to that employment that
2 you became familiar with a Trace Royal Alton
3 and Kody Corinthians Goodman?

4 A. Yes.

5 Q. True, more specifically, that you have been
6 either a caseworker for the two minor
7 children and/or a supervisor for the children
8 in their alternative care cases here in
9 Jasper County?

10 A. Yes.

11 Q. And true that you have worked with the
12 children, as well as the birth parents for
13 the children, in their underlying juvenile
14 cases, correct?

15 A. Yes.

16 Q. And is it true that Trace Royal Alton was
17 born on March 10th of 2014, making him 9
18 years old?

19 A. Yes.

20 Q. Trace was born in Newton County, Missouri?

21 A. Yes.

22 Q. And is it true that Kody Corinthians Goodman
23 was born on October 13th of 2018, making him
24 4 years old?

25 A. Yes.

1 Q. And he was also born in Newton County,
2 Missouri?

3 A. Yes.

4 Q. Who is the birth mother of both of the
5 children?

6 A. Dawndee Alton.

7 Q. And that's Dawndee Renee Alton, correct?

8 A. Yes.

9 Q. And true that she does appear here today with
10 her counsel?

11 A. Yes.

12 Q. True that you have worked with her in the
13 children's underlying juvenile cases during
14 the pendency of them?

15 A. Yes.

16 Q. And true that you had originally assisted her
17 when the case goal was reunification, working
18 on a social service plan?

19 A. Yes.

20 Q. Who is the father of Kody?

21 A. Matthew Goodman.

22 Q. That's Matthew Preston Goodman, correct?

23 A. Yes.

24 Q. True that he's also present here with counsel
25 today?

1 A. Yes.

2 Q. True that he was not married to the mother at
3 the birth of Kody, however, his name does
4 appear on the birth certificate and he's
5 registered with Putative Father Registry?

6 A. Yes.

7 Q. So he has acknowledged paternity, he has
8 never denied that Kody is not his son,
9 correct?

10 A. Correct.

11 Q. Furthermore, paternity was established
12 through DNA testing, correct?

13 A. Yes.

14 Q. By more than 99.9 percent he is Kody's
15 father, correct?

16 A. Yes.

17 Q. You have also created or attempted to work a
18 social service plan with Matthew, correct?

19 A. Yes.

20 Q. And we named a putative father for Trace, a
21 Jack W. Seitz, III, correct?

22 A. Yes.

23 Q. And we named him because he - although he was
24 not married to the mother, or on the birth
25 certificate, or registered with the Putative

1 Father Registry, the birth mother had stated
2 that he is the father, correct?

3 A. Yes.

4 Q. And did you also attempt to work a social
5 service plan with Mr. Seitz?

6 A. Yes.

7 Q. Due to the inability to confirm paternity
8 regarding Trace, we also named an unknown
9 father in Trace's case, is that true?

10 A. Yes.

11 Q. And we served that unknown father via
12 publication after the Court authorized to do
13 so through Court Order, correct?

14 A. Yes.

15 Q. Now, the putative father, Jack Seitz, he was
16 served personally at his last known address,
17 819 Kentucky, Joplin, Missouri, correct?

18 A. Yes.

19 Q. And that service would have occurred on
20 October 9th of 2022, correct?

21 A. Yes.

22 Q. Any doubt that any parent to either child has
23 not been provided proper notice in this case?

24 A. No.

25 Q. I'm going to hand you what I have marked as

1 Exhibits #1 through #17, and I'll pass those
2 to the other parties as well. Will you
3 identify each document respective to the case
4 numbers for the Court?

5 A. You want me to explain what each one is with
6 the case number associated with it?

7 Q. With the exhibit number. Excuse me.

8 A. Okay.

9 Q. Yes. So Exhibit #1, what is that?

10 A. Exhibit #1 is the petition for protective
11 custody --

12 Q. And is that regarding Trace?

13 A. Yes, it is.

14 Q. Okay. What is Exhibit Number #2?

15 A. Exhibit Number #2 is the findings from the
16 protective custody hearing regarding Trace.

17 Q. Okay. What's Exhibit #3?

18 A. It is finding, judgment, and order
19 jurisdiction, regarding Trace.

20 Q. Exhibit #4.

21 A. Motion to modify the previous orders of
22 disposition regarding Trace.

23 Q. Exhibit #5?

24 A. Finding, judgment, and order on motion to
25 modify regarding Trace.

- 1 Q. Exhibit #6?
- 2 A. Amended findings, judgment, and order
3 following case, dispositional review,
4 permanency hearing, adoption review hearing
5 regarding Trace.
- 6 Q. Exhibit #7?
- 7 A. It is findings, judgment, and order following
8 the disposition review, permanency hearing,
9 regarding Trace.
- 10 Q. Exhibit #8?
- 11 A. Findings, judgment, and order following
12 dispositional review, permanency hearing,
13 regarding Trace.
- 14 Q. Exhibit #9?
- 15 A. The petition for protective custody for Kody.
- 16 Q. Exhibit #10?
- 17 A. Protective custody hearing findings regarding
18 Kody.
- 19 Q. Exhibit #11?
- 20 A. Amended petition regarding Kody.
- 21 Q. Exhibit #12?
- 22 A. Findings, judgment, and order of jurisdiction
23 regarding Kody.
- 24 Q. Exhibit #13?
- 25 A. Motion to modify the previous orders and

- 1 disposition regarding Kody.
- 2 Q. Exhibit #15?
- 3 A. #14.
- 4 Q. #14.
- 5 A. Findings, judgment, and order on motion to
- 6 modify regarding Kody.
- 7 Q. Exhibit #15?
- 8 A. Amended findings, judgment, and order
- 9 following dispositional review, permanency
- 10 hearing, and sixty day adoption review
- 11 hearing regarding Kody.
- 12 Q. #16?
- 13 A. Findings, judgment, and order following
- 14 dispositional review, permanency hearing,
- 15 regarding Kody.
- 16 Q. And #17?
- 17 A. Findings, judgment, and order following case,
- 18 dispositional review, permanency hearing,
- 19 regarding Kody.
- 20 Q. And all of these exhibits, #1 through #17,
- 21 they were filed in each child's respective
- 22 underlying juvenile case in Jasper County,
- 23 correct?
- 24 A. Correct.
- 25 Q. And those case numbers are numbers, for the

1 Court, 21AO-JU00002 for Trace, and
2 21AO-JU00003 for Kody, to which I ask the
3 Court to take judicial notice.

4 BY THE COURT: Any objections?

5 BY MS. GOULD: No objection.

6 BY MS. ROWDEN: None.

7 BY MS. KADERLY: None.

8 BY MR. ROBERTSON: No objection, Your
9 Honor.

10 BY THE COURT: The Court will take
11 judicial notice of 21AO-JU00002 and
12 21AO-JU00003.

13 BY MS. DRAKE: Thank you, Your Honor.

14 Q. (By Ms. Drake) And is it true, Jennifer,
15 that all of these filings in those juvenile
16 cases you are familiar with as either the
17 caseworker or the supervisor for the children
18 through Children's Division?

19 A. Yes.

20 Q. And true they look to be accurate copies
21 filed in those cases?

22 A. Yes.

23 Q. And do you believe that they will assist the
24 Court in determining the best interest of the
25 children?

1 A. Yes.

2 BY MS. DRAKE: Judge, I ask that
3 Exhibits #1 through #17 be admitted.

4 BY THE COURT: Any objections?

5 BY MR. ROBERTSON: No objection.

6 BY MS. ROWDEN: No objection.

7 BY MS. GOULD: None.

8 BY MS. KADERLY: None.

9 BY THE COURT: Exhibits #1 through
10 #17 will be admitted.

11 BY MS. DRAKE: Thank you, Judge.

12 Q. (By Ms. Drake) And, Jennifer, is it true
13 that Exhibit #1, which is the petition for
14 Trace, that was filed in January of 2021,
15 correct?

16 A. Yes.

17 Q. And at the same time his brother Kody, a
18 petition was filed for him as well, correct?

19 A. Yes.

20 Q. And that's what would have brought the
21 children into alternative care, is that true?

22 A. Yes.

23 Q. After evidence, of course, correct?

24 A. Yes.

25 Q. And will you tell the Court what caused the

1 children to be removed from birth parents?

2 A. We received a call of concern that Kody
3 tested positive for methamphetamine at the
4 ER, and the explanation said Dawndee was
5 providing - could not explain the reason why.

6 Q. At the time Kody would have been about 2
7 years old, is that correct?

8 A. Yes.

9 Q. And did the birth mother at the time also
10 admit that she would not be able to pass a
11 drug test?

12 A. Yes.

13 Q. Believed she was referring to
14 methamphetamines at that time?

15 A. Yes.

16 Q. Is it true that there is a history with
17 Children's Division regarding the parents?

18 A. Yes.

19 Q. Is it true that the whereabouts of all
20 fathers to the children were unknown at the
21 time?

22 A. At the time of removal, yes.

23 Q. Later the Court did find by clear and
24 convincing evidence at adjudication hearings
25 for each child on or about March 9th of 2021

1 that the allegations contained in the
2 petition were true, correct?

3 A. Correct.

4 Q. Therefore, the children remained and have
5 remained in alternative care since that date,
6 is that true?

7 A. Yes.

8 Q. And, Jennifer, when you first were assigned
9 to the case what is the initial goal for the
10 family?

11 A. Reunification.

12 Q. And is that typical of something you see as a
13 caseworker, that the initial goal is
14 reunification with their children?

15 A. Yes.

16 Q. And what does Children's Division do in order
17 to assist families in reunifying with their
18 children?

19 A. We create goals for the family, and then
20 provide them with ways of reaching those
21 goals, making referrals for services we feel
22 would be beneficial to the family.

23 Q. And true that you work with a team of people
24 in making those decisions, is that true?

25 A. Yes.

1 Q. And who is on that team?

2 A. The guardian ad litem, and the juvenile
3 officer, as well as foster parents,
4 biological parents, parent attorneys.

5 Q. And you also sometimes include people who are
6 interested in the child, such as relatives or
7 even counselors, therapists, those sorts of
8 people, correct?

9 A. Yes.

10 Q. And true that you did that for the parents in
11 this case, correct?

12 A. Yes.

13 Q. And created a social service plan for each
14 parent, correct?

15 A. Yes.

16 Q. And did you explain to each parent when - or
17 at or near the time that the children were
18 brought into care what the service plan was
19 and what they would need to do in order to
20 safely reunify with their children?

21 A. Yes.

22 Q. And, in fact, at the protective custody
23 hearing the Court made orders for the parents
24 to participate in your social service plan,
25 and also made orders including for the

1 parents to participate in things such as drug
2 testing, correct?

3 A. Correct.

4 Q. So you believe it was clear to the parents
5 what they needed to do in order to reunify
6 safely with their children and the tasks that
7 would be required of them, not only by the
8 team, but by the Court?

9 A. Correct.

10 Q. And did the judge that preceded over each
11 juvenile hearing instruct the parents each
12 time and/or through counsel as to what was
13 required of them?

14 A. Yes.

15 Q. Concerning the birth mother, what tasks did
16 you ask the birth mother to complete in order
17 to safely reunify?

18 A. We asked Dawndee to obtain stable housing as
19 well as financial stability. We also asked
20 that she increase her support system, and
21 then obtain and maintain sobriety. We also
22 talked about ensuring that her mental health
23 needs were being met, although obtaining
24 sobriety had to be done first. And then just
25 keeping up with her criminal issues. She's

1 been arrested several times throughout the
2 case. Maintaining consistent visitation with
3 the children and following any
4 recommendations.

5 Q. And you were the caseworker from the time the
6 children were brought into care until
7 approximately April 17th of 2022, is that
8 true?

9 A. Yes.

10 Q. And at that time another caseworker started
11 managing the case, but you supervised the
12 case, correct?

13 A. Yes.

14 Q. And concerning the mother specifically
15 regarding substance abuse treatment, what was
16 her engagement like while you were the
17 caseworker?

18 A. Dawndee didn't - well, she did complete an
19 assessment at Ozark Center. When she went to
20 do the assessment they requested a UA and she
21 refused to do the UA. She was concerned that
22 providing that would allow them to steal her
23 identity, so she didn't want to comply with
24 that. Ever since I - or during the entire
25 time I had the case she never did complete

1 any form of treatment.

2 Q. Okay. And is it true that while you were the
3 caseworker that you did get a hair follicle
4 test from her in January of 2021 that tested
5 positive for methamphetamines and THC?

6 A. Correct.

7 Q. I'm handing you what has been marked as
8 Exhibit #20. Will you identify that document
9 for the Court?

10 A. This is drug screen results for Dawndee
11 Alton. It is results from a hair follicle.

12 Q. Okay. And page 2 or 3 of that Exhibit #20,
13 is that also a - is that a court report that
14 I see? Page 3.

15 A. It is actually just the drug screens that
16 were submitted for docketing.

17 Q. So these were filed in the underlying
18 juvenile case, correct?

19 A. Correct.

20 Q. And these were drug screens that were
21 completed in May of this year, correct?

22 A. Yes.

23 Q. There were three of them, is that true?

24 A. Yes.

25 Q. And they also indicate that she's testing

1 positive for methamphetamines and
2 amphetamines, is that true?

3 A. Yes.

4 BY MS. DRAKE: Your Honor, I ask that
5 Exhibit #20 be admitted.

6 BY THE COURT: Any objections to
7 Exhibit #20?

8 BY MS. ROWDEN: No objection.

9 BY MS. KADERLY: No.

10 BY MS. GOULD: None.

11 BY MR. ROBERTSON: No.

12 BY THE COURT: Exhibit #20 will be
13 admitted.

14 BY MS. DRAKE: Thank you.

15 Q. (By Ms. Drake) Did you have conversations
16 with the birth mother that ongoing use of
17 methamphetamines and amphetamines would cause
18 her inability to safely reunify with the
19 children?

20 A. I attempted to multiple times, but as long as
21 I had the case Dawndee continued to deny meth
22 use.

23 Q. And did - okay. So while you had - while you
24 were on the case she did not admit to you in
25 her conversations with you about her

1 methamphetamine use, --

2 A. Correct.

3 Q. -- she just denied it? And was she seeking
4 treatment at the time to work through that
5 denial?

6 A. No.

7 Q. And did she participate in any mental health
8 services while you carried the case?

9 A. She reported several times that she would
10 have appointments at Ozark Center due to a
11 previous hospitalization that she had a few
12 months prior to the case with me, but she
13 never did consistently attend any mental
14 health treatment.

15 Q. And as far as visitation while you carried
16 the case, what did that look like with
17 regards to the birth mother?

18 A. She had supervised visitation. I supervised
19 visits for awhile, and then we obtained a
20 parent aide to take over.

21 Q. And is it true that in February of 2022 that
22 was her last in-person visit?

23 A. Yes.

24 Q. And do you recall in February of '22 why that
25 was her last in-person visit?

1 A. She was arrested.

2 Q. And is it true that she spent six months in
3 jail?

4 A. Correct.

5 Q. And once she was released from jail you were
6 no longer the caseworker, but the supervisor,
7 is that true?

8 A. Yes.

9 Q. As far as housing is concerned, while you
10 carried the case what did her housing look
11 like? Was it stable?

12 A. No.

13 Q. And can you give the Court an idea about
14 different locations, if you recall, that she
15 did reside?

16 A. Yes. Dawndee initially was residing in an
17 apartment. She had expressed to me that she
18 wanted to leave that apartment and obtain new
19 housing, but she ended up being evicted from
20 the apartment anyway due to the criminal
21 charges that she incurred from the time the
22 kids were brought into care. And then she
23 stayed with a friend for awhile. I was able
24 to meet with her a couple of times in a
25 friend's home, and then beyond that she had

1 reported that she was couch hopping with her
2 boyfriend, and that was the last that I was
3 aware before she was arrested.

4 Q. And to your knowledge she was in Jasper
5 County Jail from approximately February of
6 '22 to June of '22, correct?

7 A. Yes.

8 Q. And do you know what she was arrested for at
9 that time?

10 A. She's had several criminal charges. I'm not
11 sure exactly what it was that got her
12 arrested that last time, but she - I believe
13 the most recent criminal charge that she
14 received was for - let's see. It was an
15 assault charge.

16 Q. What date was --

17 A. In February.

18 Q. In February of '22?

19 A. Yes. February 14th of 2022.

20 Q. Do you know who that was with or what
21 surrounded that event?

22 A. I do not.

23 Q. As far as employment is concerned relating to
24 the birth mother, did she maintain stable
25 employment while you carried the case?

1 A. No.

2 Q. And did she provide support for the children
3 while you were carrying the case?

4 A. No.

5 Q. The criminal case which she received at or
6 near the time the children were removed,
7 which you referred to, that bears Number
8 21AO-CR00119-01, is that true?

9 A. Yes.

10 Q. And it's an endangering welfare of the child,
11 correct? Dawndee.

12 A. Yes.

13 BY MS. DRAKE: Your Honor. Ask the
14 Court to take judicial notice of the criminal
15 case located here in Jasper County.

16 BY THE COURT: What is that case
17 number again?

18 BY MS. DRAKE: 21AO-CR00119-01.

19 BY THE COURT: And is that criminal
20 case resolved?

21 BY MS. DRAKE: It is.

22 BY THE COURT: Okay. Any objections
23 to the Court taking judicial notice of
24 21AO-CR00119-01?

25 BY MR. ROBERTSON: No objection.

1 BY MS. ROWDEN: No objection.

2 BY MS. KADERLY: None.

3 BY MS. GOULD: No.

4 BY THE COURT: Court will take
5 judicial notice.

6 Q. (By Ms. Drake) True that the mother entered
7 a guilty plea in that case in January of this
8 year?

9 A. Yes.

10 Q. And what was the mother's contact with you
11 like while you carried the case?

12 A. Very sporadic. There would be times where I
13 would be able to speak with her multiple
14 times during the week, and then times where I
15 wouldn't be able to get a hold of her for
16 weeks.

17 Q. And to be clear, you had this case as the
18 caseworker for more than a year, correct?

19 A. Yes.

20 Q. And so for more than a year the mother was
21 not participating in treatment, not
22 participating in services, and to your
23 knowledge was still using drugs?

24 A. Yes.

25 Q. As far as the father Kody is concerned,

1 Matthew Goodman, what were some of the tasks
2 that you requested Mr. Goodman complete in
3 order to stay unified?

4 A. To demonstrate sobriety. He was Court
5 ordered to do a hair follicle at the very
6 beginning of the case. We've also asked him
7 to complete a substance abuse assessment. We
8 discussed referring him for a psych eval once
9 his sobriety had been achieved. Excuse me.
10 And verified for at least ninety days. And
11 we asked him to provide proof of employment,
12 and maintain stable housing. We have had
13 ongoing conversations about the fact that we
14 would have to complete an ICPC, but the team
15 has not been in agreement to move forward
16 with that until he could provide the drug
17 test and work a case plan and engage with
18 services. And then to refrain from the
19 criminal activity.

20 Q. And what was the team - was the team
21 concerned with past drug use regarding
22 Matthew Goodman?

23 A. Yes.

24 Q. Tell the Court about what you know relating
25 to his past drug use.

- 1 A. So Matthew had a previous preponderance of
2 evidence finding at Children's Division in
3 April of 2015 where his other children were
4 placed in protective custody. At the time
5 that was for unsanitary living conditions,
6 life threatening for hygiene, and unsafe,
7 inadequate shelter. There was meth use
8 involved in that case by both parents. And
9 then at the time that Trace and Kody were
10 placed in protective custody Matthew had two
11 pending possession charges in Missouri.
- 12 Q. So do you believe that the tasks requested of
13 him be the same tasks that you would ask of
14 any parent with that history?
- 15 A. Yes.
- 16 Q. And the Court ordered him to do those tasks,
17 and including drug treatment and drug
18 testing, is that true?
- 19 A. Yes.
- 20 Q. Do you believe that he was aware that he was
21 Court ordered to do those things?
- 22 A. Yes.
- 23 Q. And what was his response?
- 24 A. He has refused to do anything that we've
25 asked of him. He repeatedly has said that he

1 wants us to go through his attorney, or that
2 he wants to contact his attorney first. So I
3 made several attempts as well to reach out to
4 his attorney. I did speak to her over the
5 phone and provided her with the same list of
6 tasks that I provided to Matt. And then for
7 a period of time I started just emailing them
8 both at the same time so that they would both
9 get the same information from me at the same
10 time.

11 Q. So regarding substance abuse treatment is it
12 true that you have no knowledge of him
13 completing treatment in this case?

14 A. Correct.

15 Q. And concerning UAs and hair follicles, has he
16 refused to submit to any testing during the
17 time the children have been in care?

18 A. Yes. He did provide us with some photos of
19 drug screen results, but we - we couldn't
20 verify who took the tests, or who provided
21 the tests, or whose urine it was, or anything
22 like that. He did that on his own. I'm not
23 sure, because I can't verify anything on
24 those, if they were legitimate.

25 Q. And did you tell the father that you could

1 not verify those results, therefore, he would
2 need to submit to your testing that was
3 requested by Children's Division?

4 A. Yes. But we did provide that information to
5 the team anyway.

6 Q. But he has not submitted to any testing while
7 you've been the caseworker?

8 A. Correct.

9 Q. And regarding the psych eval, you mentioned
10 the psych eval. Has he completed a
11 psychological evaluation during this case?

12 A. No.

13 Q. Why is that?

14 A. We haven't been able to verify sobriety.

15 Q. Do you think he understands that he needs to
16 do the drug testing in order to get a
17 psychological evaluation completed?

18 A. Yes.

19 Q. Has his employment been stable for the time
20 that the kids have been in care?

21 A. I can't really verify that. I do know that
22 he has reported having employment. Initially
23 he reported that he was self-employed by
24 fixing up houses. The only documentation
25 that I have seen is a tax return.

1 Q. What about housing? Has housing been stable?

2 A. He has provided the same address in Baxter,
3 so as far as I know he is residing in the
4 same home.

5 Q. And have you been able to do a walkthrough at
6 that home?

7 A. No.

8 Q. Why not?

9 A. He resides in Kansas. We would need to go
10 through ICPC.

11 Q. And ICPC has not been completed due to his
12 failure to drug test, is that true?

13 A. Yes. To take a drug test or engage in his
14 case plan.

15 Q. As far as support is concerned, while you
16 carried the case was he providing support for
17 the children?

18 A. He would provide food and things for them to
19 do during visits.

20 Q. And how often did he have visits?

21 A. Weekly.

22 Q. And he was consistent with his visits in the
23 case, is that true?

24 A. Yes.

25 Q. Each week he shows up and participates with

1 the children, correct?

2 A. Yes.

3 Q. And he sees both children, is that true?

4 A. Yes.

5 Q. Why is he seeing both children?

6 A. Trace views Matt as a father figure, and we
7 felt that it would be really hard on Trace to
8 see his brother go get to have visits and he
9 couldn't. We also, for the majority of that
10 time, had it set up to where mom and dad's
11 visits were back to back, and so the team
12 decided to allow Trace to be able to stay and
13 not have to leave after mom's visit.

14 Q. Correct me if I'm wrong, but would it be a
15 true statement to say that the only thing
16 that the father, Matthew Goodman, has
17 participated in consistently would be
18 visitation?

19 A. Correct.

20 Q. Regarding the putative father for Trace, the
21 Jack Seitz, is it true that he was notified
22 that trace was in care at or near removal?

23 A. Yes.

24 Q. And true that he told your agency that he had
25 no desire to engage in the case plan or

1 reunify with the child?

2 A. Yes.

3 Q. And true that he has provided no support for
4 Trace while Trace has been in care?

5 A. Correct.

6 Q. True that he is not currently or has in the
7 past asked for contact or about the wellbeing
8 of Trace while Trace has been in care?

9 A. Yes.

10 Q. And true that he indicated that he wanted his
11 rights terminated regarding Trace?

12 A. Yes.

13 Q. True that you mailed consents for him to
14 sign, however, you have heard nothing from
15 him, correct?

16 A. Correct.

17 Q. And as to any unknown father for Trace, has
18 any man ever come forward to support Trace
19 during the pendency of this case?

20 A. No.

21 Q. And has any man called your office or
22 attempted to create or maintain a
23 parent/child relationship with Trace?

24 A. No.

25 Q. Do you believe it's in the children's best

1 interest that the parental rights of the
2 birth mother and fathers in this case be
3 terminated?

4 A. Yes.

5 Q. And that's in line with the case goal for the
6 kids, correct?

7 A. Yes.

8 Q. And true that the Indian Child Welfare Act
9 does not apply to any children, correct?

10 A. Correct.

11 Q. Is it true that at one point Matthew Goodman
12 did indicate that he might be on the rolls
13 for the Seminole Tribe?

14 A. Yes.

15 Q. And true that your agency did do it's due
16 diligence and investigated that along with my
17 office and we learned via letter from the
18 tribe that he is not on the rolls, correct?

19 A. Yes.

20 Q. And he also indicated to you, Matthew stated
21 to you that he is not on the rolls, correct?

22 A. Correct.

23 Q. And, therefore, the child would not be an
24 Indian child pursuant to the act, correct?

25 A. Correct.

1 Q. True also that the Interstate Compact on the
2 Placement of the children does not apply,
3 correct?

4 A. Correct.

5 BY MS. DRAKE: Judge, I have no
6 further questions of this witness.

7 BY THE COURT: Mr. Robertson.

8 BY MR. ROBERTSON: Thank you, Judge.

9 CROSS-EXAMINATION BY MR. ROBERTSON:

10 Q. Are you aware of the attorney that
11 represented my client in the underlying case?

12 A. Yes.

13 Q. Who was that?

14 A. Kathleen Wolf Miller.

15 Q. In the underlying case or was that a criminal
16 case?

17 A. That was the underlying juvenile case.

18 Q. Did she represent him the whole time?

19 A. I believe so. She was the first attorney
20 that I recall him having.

21 Q. Is it your understanding that she still
22 represents him in the underlying case?

23 A. I - I am not sure.

24 Q. Okay. How are you sure that she represented
25 him at that time?

1 A. Because I had multiple communications with
2 her, and Matt as well.

3 Q. When was the last time you spoke with her?

4 A. With Kathleen?

5 Q. Yes.

6 A. The last time I spoke with her on the phone
7 was in August of 2021. August 25th of 2021.

8 Q. Thank you. Have you released a case plan to
9 Ms. Wolf Miller?

10 A. Yes.

11 Q. When did you do that?

12 A. I did that - I provided it to her verbally on
13 August 25th, 2021, and then I also emailed a
14 list to Matthew and his attorney - if you
15 would give me just one second. That was, let
16 me see - on July 1st of 2021 I emailed to
17 Matthew. I gave it to her verbally on April
18 9th of 2021. I wrote her an SMST on June
19 7th, 2021. I forwarded the case plan again
20 to Kathleen Miller on August 25th, 2021. I
21 emailed Matt again with the list of tasks on
22 February 10th, 2022. And that is the last
23 documentation I have regarding him right now.
24 Q. At any point in this case was any of that
25 stuff completed as to him?

1 A. Not that I can actually verify. Matt has
2 sent Shania, the current caseworker, some
3 photos of different things, but it - like one
4 page of a substance abuse assessment, it's
5 not the full assessment, and it only says
6 that they recommended no services because he
7 reported no drug use. And then we have the
8 screenshots of the drug tests that we can't
9 verify. There's no agency name, no date, no
10 name anywhere, other than what was written,
11 handwritten on it. And he sent a Deed to his
12 home. And then I believe that he has
13 provided Shania with a couple of either
14 letters or possibly checks that have been
15 written to him for his verification of
16 employment.

17 Q. Have you ever sent him at his request a copy
18 of the file?

19 A. He has not requested a copy of the file from
20 me.

21 BY MATTHEW GOODMAN: If I may speak?

22 BY THE COURT: You may not, sir. Mr.
23 Robertson is asking questions on your behalf
24 right now.

25 BY MATTHEW GOODMAN: Oh.

1 Q. (By Mr. Robertson) Was there a time when you
2 were unable to get a hold of his attorney?
3 A. Yes. Most of the time.
4 Q. Is that because you couldn't get through to
5 her office?
6 A. Yes. And she would not respond to my emails.
7 And she didn't attend court a handful of
8 times as well.
9 Q. Say that again?
10 A. She didn't attend court a handful of times
11 for the motion to modify hearing.
12 Q. Okay. Was he asked to do a parenting class?
13 A. No, I don't believe we - I asked him to do a
14 parenting class. He had been receiving
15 parent aide services. That may have been a
16 conversation that he had with Shania.
17 Q. In a case similar to this would you generally
18 ask a parent to complete a parenting class?
19 A. If we had concerns with their parenting, yes.
20 Q. Okay. So it wouldn't hurt to complete a
21 parenting class, is that fair?
22 A. Fair. Yes.
23 Q. So if I showed you a document that shows that
24 he completed a parenting class, would you
25 consider that positive --

- 1 A. Yes.
- 2 Q. -- towards this case?
- 3 A. Yeah.
- 4 Q. Does that show that?
- 5 A. Yes.
- 6 Q. Thank you very much. It's my understanding
7 that my client did a drug evaluation and sent
8 you an email regarding that.
- 9 A. He reported that he did, yes.
- 10 Q. Okay. So you don't dispute that?
- 11 A. No.
- 12 Q. Have you ever had a release signed on his
13 behalf?
- 14 A. He reported that he did sign a release for
15 us.
- 16 Q. Did you ever go after anything so you could
17 see anything in the release?
- 18 A. I'm sorry. Can you repeat that?
- 19 Q. Did you ever go after anything that would
20 have been released to you?
- 21 A. That would have been Shania.
- 22 Q. Okay.
- 23 A. She had attempted to obtain any records from
24 Spring River Mental Health regarding Matthew.
- 25 Q. She did attempt that?

1 A. Yes, she did.

2 Q. Okay. And did she get anything?

3 A. No.

4 Q. Did they say they didn't have anything?

5 A. I don't recall that. Shania could answer to
6 that better than I can.

7 Q. Okay.

8 BY MR. ROBERTSON: I have no other
9 questions of this witness, Your Honor.

10 BY THE COURT: Ms. Rowden.

11 BY MS. ROWDEN: Thank you.

12 CROSS-EXAMINATION BY MS. ROWDEN:

13 Q. What referrals were made on behalf of mom for
14 drug assessment?

15 A. I had referred her to Lafayette House and New
16 Directions.

17 Q. Okay. Was she ever - was she ever referred
18 to Hope Springs, to your knowledge?

19 A. She already had services at Hope Springs
20 initially.

21 Q. Do you know whether or not she continued
22 those after this case was opened?

23 A. It was very sporadic. She went in maybe a
24 couple of times, but she didn't, as far as I
25 know, engage in any formal treatment for any

1 extended period of time.

2 Q. And just to clarify, it sounds like you were
3 - the underlying case.

4 A. Correct.

5 Q. Looking at the - I believe it was #20,
6 Exhibit #20. Yes, Exhibit #20. In which it
7 is shown that she tested positive, or
8 presumed positive, in May of this year for
9 methamphetamine. You testified to that,
10 correct?

11 A. Yes.

12 Q. After that date, in June of this year, on
13 June 13th, did you send mom to get a UA and
14 hair follicle?

15 A. Shania did.

16 Q. Okay. And to your knowledge did those come
17 back negative?

18 A. I believe so.

19 Q. Were you able to get any kind of knowledge as
20 to why a hair follicle would show negative
21 less than a month after a positive UA?

22 A. No, that would be Shania who would follow up
23 on that.

24 Q. Okay. What specific goals did you create
25 with mom?

1 A. Specifically, I - the goals that I had for
 2 Dawndee were to obtain stable housing,
 3 maintain financial stability, build her
 4 support system, and maintain her sobriety and
 5 demonstrate her sobriety. I also did talk
 6 with her about mental health treatment,
 7 including a psych eval once we were able to
 8 verify ninety days of sobriety.

9 Q. You were able to verify ninety days of
 10 sobriety, correct?

11 A. If that hair follicle is accurate, then, yes,
 12 we just did.

13 Q. So to your knowledge you didn't do that in
 14 April?

15 A. The psych eval?

16 Q. Confirmed sobriety in April.

17 A. I don't recall the date --

18 Q. Okay.

19 A. -- for those.

20 Q. Are you aware as to whether mom was ever
 21 referred for a psych eval?

22 A. No, she hasn't. Unless Shania has done so
 23 recently.

24 Q. Okay. I'll ask Shania. I understand you
 25 were the supervisor at the time. You stated

1 that when Dawndee was released from jail that
2 you were the supervisor at that time,
3 correct?

4 A. When she was released from jail?

5 Q. Yes.

6 A. After she had been incarcerated for six
7 months?

8 Q. Yes.

9 A. No, I was the supervisor, not the worker.

10 Q. That's what I meant. Thank you.

11 A. Okay.

12 Q. Is there any reason why visits did not resume
13 at that point?

14 A. Yes. Trace's therapist has been working with
15 him on his trauma narrative. Well, actually,
16 right after she got out she did a phone call
17 with Trace while he - while the boys were
18 visiting with Matthew. And after that phone
19 call Trace exhibited some very extreme
20 behaviors, lots of aggression, defiance,
21 things like that. So the team had some
22 conversations about suspending her visitation
23 for awhile until we could get a therapist to
24 weigh in on whether that continued contact
25 would be in his best interest. I know that

1 Shania has been in communication with Trace's
2 therapist, but at this point working on his
3 trauma narrative they have started talking
4 about some of the events that happened while
5 he lived with his mom, and he has reverted
6 back to bedwetting and some of the other
7 behaviors and issues that he had previously.
8 So that creates concern as far as reinstating
9 those visitations.

10 Q. Was therapeutic visitation or family therapy
11 for mom and Trace ever sought out or pursued?

12 A. We are waiting for his therapist to tell us
13 that she feels that he's ready for that, or
14 that it's a good time for him.

15 Q. And how often are you communicating with the
16 therapist?

17 A. I can't answer to that. I don't know how
18 often Shania calls her.

19 Q. Is there a reason she couldn't continue
20 visitation with Kody?

21 A. The concern is that Trace worries about his
22 little brother, too, and, again, kind of
23 going back to Kody having visits without
24 Trace, or vice versa, it makes it really hard
25 for Trace. So the team worries that

1 regardless of which child might have
2 visitation with her, that Trace will have a
3 very negative impact. And because Kody was
4 so young at the time and can't speak to what
5 happened or what he recalls, there is concern
6 that if it is having this big of an impact on
7 Trace that it's likely to have an impact on
8 Kody as well. I know when Kody was under her
9 care at one point he had a broken arm, and
10 then he tested positive for meth, and so we
11 don't know what else may have occurred in the
12 home that might cause him to have an
13 emotional reaction to those visits.

14 Q. But he didn't display any emotional reactions
15 individually from those visits, correct?

16 A. Previously, no.

17 Q. Up until mom's visits were stopped was she
18 consistent with those visits?

19 A. No. She was very sporadic in her attendance
20 to the visits. She actually missed visits on
21 both of the boys' birthdays. A lot of times
22 it would be because either she forgot the
23 visit day, or she would be arrested, or have
24 transportation issues.

25 BY THE COURT: I'm going to interrupt

1 just for a moment. I've been advised that
2 the firearm lights may begin flashing, but
3 the alarm should not sound. There is not a
4 fire in the building. Nobody should panic.
5 I apologize for the interruption. Go ahead.

6 Q. (By Ms. Rowden) And what kind of - did you
7 have mom set up on Tomo, or were you just
8 calling her randomly?

9 A. When I was the caseworker I don't think that
10 we had Tomo initially. I did not set her up
11 on Tomo.

12 Q. No further questions.

13 BY THE COURT: Ms. Kaderly.

14 BY MS. KADERLY: Thank you.

15 CROSS-EXAMINATION BY MS. KADERLY:

16 Q. You mentioned that - there were some
17 questions in cross-examination from Mr.
18 Robertson about the father, Matthew Goodman,
19 and being told about what he was expected to
20 do.

21 A. Yes.

22 Q. Did he also come to court hearings?

23 A. Yes, he did.

24 Q. And were those things often discussed at
25 court hearings?

1 A. Yes.

2 Q. And so he would have heard that information
3 while he was seated in the courtroom?

4 A. Yes.

5 Q. Were there also occasions when you would have
6 had family support team meetings?

7 A. Yes.

8 Q. Did he participate in those?

9 A. Yes, he has.

10 Q. And so would you have, during those family
11 support team meetings, also been discussing
12 what services were available to him and what
13 the expectations were for him?

14 A. Yes.

15 Q. So there were a variety of different ways
16 that he would have received the information
17 about what was expected of him, and he would
18 have had ample opportunity to ask for
19 assistance in accessing those?

20 A. Yes.

21 Q. Did he ever ask you for assistance in
22 accessing those services?

23 A. No. He just would tell me to go through his
24 attorney.

25 Q. And certainly we can respect that if folks

1 have attorneys that they may prefer that, but
2 it also creates some difficulties as well?

3 A. Yes. Well, in this situation I - because I
4 had a hard time getting a response from Ms.
5 Miller, I would email Matt and tell him I
6 have not heard from your attorney, have you
7 talked to her, and try to make sure that he
8 was getting the information from her that I
9 was trying to provide.

10 Q. So you communicated with Mr. Goodman by email
11 as well?

12 A. Yes.

13 Q. And do you recall, did you provide him emails
14 that also outlined what his expectations or
15 services were?

16 A. Yes.

17 Q. So a variety of different ways that
18 information was coming to him?

19 A. Yes.

20 Q. Both by email, him being present during
21 conversations or part of team meetings, --

22 A. Yes.

23 Q. -- or court proceedings, as well as whatever
24 might have been provided to him by his
25 attorney?

- 1 A. Correct.
- 2 Q. You mentioned that - there were some
- 3 questions by Ms. Rowden in regards to why
- 4 visits maybe didn't resume, and you mentioned
- 5 that Trace had a lot of extreme behaviors?
- 6 A. Yes.
- 7 Q. Those extreme behaviors were mostly
- 8 regressive behaviors, or was there something
- 9 more?
- 10 A. It was, I believe, mostly regressive
- 11 behaviors, things that he had been working on
- 12 for quite some time.
- 13 Q. Did he seem to become agitated?
- 14 A. Yes.
- 15 Q. Did he have difficulty sleeping?
- 16 A. Yes.
- 17 Q. Where he has been without that contact for a
- 18 period of time, do we continue to see those
- 19 problems?
- 20 A. No, not until he started working on his
- 21 trauma narrative in therapy.
- 22 Q. And because it's kind of stirring the issues
- 23 up again, we believe, then?
- 24 A. Yes.
- 25 Q. Okay.

1 BY MS. KADERLY: I don't have
2 anything else.

3 BY THE COURT: Ms. Gould.

4 BY MS. GOULD: I don't have any
5 additional questions.

6 BY THE COURT: Any redirect?

7 BY MS. DRAKE: No, Judge. Thank you.

8 BY THE COURT: Any additional
9 questions in response - or I should say any
10 additional questions for this witness.

11 BY MR. ROBERTSON: No, Your Honor.

12 BY THE COURT: All right. Ms. Drake.

13 BY MS. DRAKE: Thank you.
14 Petitioners will call Shania Riley.

15 BY THE COURT: Before we do that why
16 don't we take a recess. We will give
17 everybody a break. And the Court is going to
18 take up a different matter really quickly.
19 And so I'm going to ask everybody to step out
20 in the hallway, and then we'll recall the
21 case when we're ready to resume.

22 (OFF THE RECORD)

23 (RECESS TAKEN)

24 (BACK ON THE RECORD)

25 BY THE COURT: We are back on record

1 in 22AO-JU00287 and 288. Ms. Drake, I
2 believe you were calling Ms. Riley, is that
3 correct?

4 BY MS. DRAKE: That's correct.

5 BY THE COURT: All right. If you
6 would raise your right hand for me.

7 (WITNESS SWORN)

8 BY THE COURT: You may lower your
9 hand. Will you say and spell your first and
10 last name for my court reporter, please?

11 BY THE WITNESS: Shania Riley.
12 S-H-A-N-I-A. Last name, R-I-L-E-Y.

13 BY THE COURT: And we may
14 periodically get interrupted by this fire
15 alarm. As previously announced, it's not a
16 true emergency. But if it is sounding, if
17 everybody would stop for a moment, just so,
18 one, my court reporter can hear everybody
19 clearly, and two, it doesn't pick up on her
20 recording. Just pause for a moment, wait for
21 it to finish, and then we can start back up.
22 Ms. Drake.

23 BY MS. DRAKE: Thank you.

24 SHANIA RILEY

25 Having been first duly sworn and examined,

1 testified as follows:

2 DIRECT EXAMINATION BY MS. DRAKE:

3 Q. Shania, is it true that you are the current
4 caseworker for both Trace and Kody?

5 A. Yes.

6 Q. And true that you became familiar with them
7 through your employment with Children's
8 Division as their caseworker?

9 A. Yes.

10 Q. True that you've been their caseworker since
11 approximately April 17th of 2022?

12 A. Yes.

13 Q. And pursuant to that employment you are also
14 familiar with the birth mother, a Dawndee
15 Renee Alton, a birth father for Kody, Matthew
16 Preston Goodman, and you would be familiar
17 with also the putative father that we named
18 for Trace, a Jack W. Seitz, and that we named
19 an unknown father due to the lack of
20 paternity established for Trace, correct?

21 A. Yes.

22 Q. True that you heard testimony from the
23 supervisor now, Jennifer Emmons, on this
24 case, and you were in the courtroom during
25 her testimony, is that accurate?

1 A. Yes.

2 Q. And true that she has been the supervisor on
3 this case since you have taken over as the
4 caseworker, correct?

5 A. Yes.

6 Q. Now, the birth mother, is it true that you
7 provided her with information concerning the
8 social service plan that was designed for her
9 at the beginning of the children's cases?

10 A. Yes.

11 Q. And you've been in consistent communication
12 with her as she allows you to maintain
13 contact with her periodically?

14 A. Yes.

15 Q. And you discuss that social service plan with
16 her when you are in communication?

17 A. Yes.

18 Q. And concerning substance abuse treatment,
19 while you've been the caseworker what has she
20 engaged in?

21 A. She completed an intake at Ozark Center on
22 June 30th of 2022. My last report from that
23 intake was on 9-7 of 2022. And then I have
24 an updated intake on February 2nd of 2023 and
25 she is still currently engaged.

1 Q. So she is currently engaged in treatment,
2 correct?

3 A. Yes.

4 Q. However, has she completed treatment?

5 A. No.

6 Q. Any explanation from the birth mother why it
7 took her more than a year to engage in her
8 treatment plan?

9 A. No.

10 Q. And is it true that while you've been the
11 caseworker she has -- (ALARM SOUNDS)

12 BY THE COURT: Please state your
13 question over.

14 BY MS. DRAKE: Thank you.

15 Q. (By Ms. Drake) While you've been the
16 caseworker is it true that as recently as May
17 of this year, last month, she tested positive
18 on three different occasions, on or about May
19 18th of 2023, on or about May 22nd of 2023,
20 and on or about May 27th, 2023, for
21 methamphetamines and amphetamines?

22 A. Yes.

23 Q. And have you had discussions with the birth
24 mother since her positive tests?

25 A. Yes.

1 Q. And have you discussed with her her relapse?

2 A. Yes.

3 Q. What did she tell you regarding that relapse?

4 A. She did disclose to me that she relapsed.

5 She had found a vape in some of her

6 belongings, and it was a one time relapse,

7 but she did use a vape, I believe about two

8 or three days in a row, but she has not used

9 since then.

10 Q. Is it true that your agency recently did

11 refer her for a psychological evaluation at

12 College Skyline to complete a psychological

13 evaluation due to her current negative test

14 in June?

15 A. Her negative -

16 Q. Or was it end of May? Sorry.

17 A. Yes.

18 Q. So she did test negative on a UA on May 31st,

19 is that true?

20 A. No. Sorry. It was her negative hair

21 follicle in December that prompted the

22 psychological evaluation referral.

23 Q. I'm sorry. I'm confused. So I'm going to go

24 through the timeline just so we have

25 clarification for the Court. So in May of

1 2023 -- (ALARM SOUNDS)

2 BY THE COURT: It's getting shorter
3 every time. In May of 2023?

4 Q. (By Ms. Drake) She did test positive for
5 methamphetamines and amphetamines, correct?

6 A. Yes. Correct.

7 Q. And then after that was it true that this
8 month you sent her for a hair follicle in
9 June?

10 A. Correct.

11 Q. And she tested negative on that hair
12 follicle, correct?

13 A. Correct.

14 Q. And prior to the recent referral for her
15 psychological evaluation your agency has not
16 been able to refer her for psychological
17 testing because you did not have a period of
18 sobriety, the ninety days, is that accurate?

19 A. So I had a negative hair follicle in December
20 of 2022 that showed - since it goes back
21 ninety days, I had sobriety confirmed at that
22 point, and that's when I sent her for a
23 psychological evaluation referral.

24 Q. Okay. But she did not complete one at that
25 time, correct?

1 A. She did. I don't have any confirmation of it
2 from Wess Baugh of it being completed, but
3 she did attend those appointments with Wess
4 Baugh.

5 Q. Okay. So is that by her report that she
6 attended or through confirmation from Wess
7 that she attended?

8 A. Confirmation from Wess.

9 Q. So Wess did confirm that she did attend an
10 assessment or evaluation?

11 A. I - yes. And I believe it was in April of
12 this year.

13 Q. Okay. And do you have the results of that
14 evaluation?

15 A. No. And I've reached out to Wess several
16 times for it.

17 Q. And that's normal for psychological
18 evaluations to take a couple of months
19 probably to get the results back, is that
20 true?

21 A. Yes.

22 Q. But the psychological evaluation is something
23 that your agency has been requesting of
24 mother since the time that the children were
25 removed, correct?

1 A. Correct.

2 Q. And just recently we have her completing it,
3 a month prior to the termination hearing,
4 correct?

5 A. Correct.

6 Q. And as far as visitation is concerned, did
7 the birth mother have visitation with either
8 child while you've been the caseworker?

9 A. No.

10 Q. Why has she not had visitation with the
11 children?

12 A. Due to her calling in during one of Matthew's
13 visits, and Trace's behaviors escalating
14 during that visit, it was decided to
15 transition the children to therapeutic.

16 Q. And mom had been in jail for approximately
17 six months prior to that phone call, correct?

18 A. Correct.

19 Q. And so she had not had contact with the
20 children for six months before she called in,
21 correct?

22 A. I believe she called in while she was in jail
23 during one of Matthew's - she was residing in
24 jail when she called in for that visit.

25 Q. Okay. But it was a six month period prior to

1 the phone call that she had not had contact,
2 correct?

3 A. Yes.

4 Q. Okay. And thereafter the team decided that
5 it would be best for the children, due to the
6 behaviors, not to have mother proceed with
7 visits until we got a therapist's
8 recommendation that those were in the child's
9 best interest, correct?

10 A. Correct.

11 Q. And have you been able to get that
12 recommendation from the therapist?

13 A. I have talked to -- (ALARM SOUNDS). I have
14 talked with Courtney and she was not willing
15 to recommend it at the time that we talked to
16 her.

17 Q. Has mother been asking you for visitation?

18 A. She has.

19 Q. And have you followed up with Courtney
20 consistently regarding her recommendation?

21 A. Yes.

22 Q. And do you know why she is not recommending
23 visits at this time?

24 A. Yeah. At the beginning of - his therapy
25 sessions were supposed to originally only be

1 twelve weeks long. In the beginning stages
2 of that it was them working on him processing
3 his emotions. But he was still displaying a
4 hard time in his regular life on how to
5 process those, and so when they originally -
6 so then they began working on the trauma
7 narrative and he began bedwetting. He was
8 wetting his pants at school. And he just was
9 regressing in his behaviors.

10 Q. Do you believe it's in the child's best
11 interest to have contact with the mother
12 today?

13 A. No.

14 Q. Why not?

15 A. I think it's - I would say due to Trace
16 really starting to remember and work through
17 his trauma. I'm not sure that he would be in
18 the right place to be able to process what
19 he's feeling.

20 Q. And the last in-person visit to your
21 knowledge was in February of 2022 with the
22 children, correct?

23 A. Correct.

24 Q. While you've been the caseworker what has
25 mother's housing been like?

1 A. When I originally took over she had showed up
2 to the office with all of her belongings in a
3 hamper. She was - she reported that it was
4 really difficult sleeping on different
5 couches every night. But in about March of
6 this year is when she moved into her friend's
7 mother's house, and she has resided there
8 since today. (sic)

9 BY THE COURT: I'm sorry. You said
10 that was March?

11 BY THE WITNESS: Of this year.
12 Correct.

13 BY THE COURT: Thank you.

14 Q. (By Ms. Drake) Do you know if she is on the
15 title to that house?

16 A. I do not believe so.

17 Q. And fair to say that her friend could kick
18 her out at any time?

19 A. Correct.

20 Q. And do you know if she would have a plan if
21 something like that were to happen?

22 A. No, I do not know. I have talked to her
23 about obtaining her own housing at God's
24 Resort because she had - did have some
25 sobriety, and she said that she would like to

1 stay where she is at.

2 Q. And the place that she currently is at, is it
3 true that she does not have beds or a room
4 ready for the children?

5 A. Correct. She is currently occupying the room
6 that the boys would be in.

7 Q. And then would her plan be to sleep on the
8 couch or what?

9 A. Yes. To move out into the living room on the
10 couch.

11 Q. Do you believe that that is a stable
12 environment for the children?

13 A. No.

14 Q. And as far as employment, did the birth
15 mother maintain employment during the time
16 that you've been the worker?

17 A. I have no verification of employment since
18 becoming the worker.

19 Q. And you have no verification that she's
20 getting paid any type of money, correct?

21 A. Correct.

22 (ALARM SOUNDS)

23 Q. What type of employment does mother tell you
24 she's doing?

25 A. She has reported that she's taking care of

1 her friend that has MS.

2 Q. Is this at the same location that she's
3 residing?

4 A. Correct.

5 Q. And does she inform you that she's not
6 getting paid for this?

7 A. Correct.

8 Q. Do you believe that she is residing there for
9 free for this care, or what's the
10 arrangement, if you know?

11 A. From my understanding she is working on
12 trying to obtain employment through Freedom
13 Care, which is who would pay her for taking
14 care of them.

15 Q. And how long has she been trying to obtain
16 employment through Freedom Care?

17 A. I believe since earlier this year. I would
18 say we had talked about it when we had met in
19 March in her home.

20 Q. Has she also reported to you that she wants
21 to start working nightshifts at a location
22 should one become available?

23 A. She did report that to me during our last
24 home visit, but since she has said that she's
25 working at Denney's.

1 BY THE COURT: I'm sorry, at what?

2 BY THE WITNESS: At Denney's.

3 BY THE COURT: Thank you.

4 A. But she starts her orientation on Thursday.
5 So as of today, she has not worked a single
6 day there.

7 Q. (By Ms. Drake) And has she reported to you
8 -- (ALARM SOUNDS). Has she reported to you
9 what her plan for childcare would be?

10 A. She did report when she would be working
11 overnights that her friend's mother would
12 watch them while she was at work. When I
13 asked her support system she seemed pretty
14 hesitant about agreeing to that arrangement.

15 Q. Do you know anything about this person who
16 would be providing care, even a background
17 check or anything?

18 A. I did run a Casenet search of her and nothing
19 appeared out of - there were no concerning
20 charges for her.

21 Q. But she doesn't appear to be on board with
22 babysitting?

23 A. Correct.

24 Q. And as far as support is concerned, is it
25 true that the mother is over \$2,000.00 in

1 arrears right now in her child support
2 obligation?

3 A. Yes.

4 Q. True that she is ordered to pay child support
5 in the amount of \$92.00 a month beginning on
6 May 15th of 2021?

7 A. Yes.

8 Q. And true that in the last thirteen months she
9 has made four payments?

10 A. Yes.

11 Q. And do those payments appear to be some sort
12 of wage garnishment? If you know.

13 A. I mean, -- (ALARM SOUNDS). Yes, through
14 garnishments.

15 Q. However, we have not been able to verify any
16 employment, so do you know where she was
17 working?

18 A. She had reported to me that she was employed
19 at Leggett & Platt at one point, but I have
20 no - I mean, I have no paystubs or any
21 verification of that employment.

22 Q. True that while she did have visitations, I
23 guess this wouldn't have been while you were
24 the caseworker, but is it your understanding
25 that she was providing some in kind items at

1 the visits prior to February of 2022?

2 A. Correct.

3 Q. But since then has she provided any in kind
4 items for the children?

5 A. No.

6 Q. What has her contact been like with you since
7 you have been the caseworker?

8 A. This year it's been pretty consistent. A lot
9 of phone tag. But usually we are able to get
10 in contact. When I originally took over this
11 case it was very inconsistent. I was able to
12 do two home visits with her last year.

13 Q. And she has attended team meetings, is that
14 true?

15 A. Yes.

16 Q. Concerning Kody's father, Matthew Goodman,
17 true that you also have been in communication
18 with him relating to his child?

19 A. Yes.

20 Q. And you've been the caseworker now for over a
21 year, correct?

22 A. Yes.

23 Q. And so have you communicated with him what
24 his social service plan is and what he needs
25 to be doing on that plan in order to safely

1 reunify with his child?

2 A. Yes.

3 Q. And you've done it on multiple occasions,
4 correct?

5 A. Yes.

6 Q. And what is his response to you?

7 A. Oftentimes it's I am not able to make it to
8 Missouri to do any sort of treatment at Ozark
9 Center or any type of UAs. The wear and tear
10 on his vehicle between child support and
11 providing during visits were bleeding him dry
12 financially.

13 Q. So do you have concerns about his ability to
14 care for his child?

15 A. Yes.

16 Q. And he is residing in Kansas, is that true?

17 A. Yes.

18 Q. Where in Kansas is he residing?

19 A. Baxter Springs.

20 Q. Do you know how far away that is from here?

21 A. I believe it's no more than fifteen miles. I
22 don't - I can't say off the top of my head,
23 actually.

24 Q. Less than an hour?

25 A. Yeah. It's less than an hour.

1 Q. And do you believe that that is an
2 unreasonable distance to ask a parent to work
3 services for their child?

4 A. I do not believe.

5 Q. And do you believe that - well, has he
6 reported to you what his employment schedule
7 is like?

8 A. Yeah. He has reported initially that he was
9 flipping homes in the area, but since he did
10 report to me on February 14th of this year
11 that he was traveling to Louisiana for work,
12 and on 6-4 of this year he also reported he
13 was in Effingham, Illinois.

14 Q. I believe that he has reported that he's
15 self-employed, correct?

16 A. Correct.

17 Q. Therefore, is it your understanding that he
18 has the ability to provide his own work hours
19 or his schedule for himself?

20 A. Yes.

21 Q. And that would, of course, allow him to make
22 time to engage in services for his child,
23 correct?

24 A. Correct.

25 Q. Should he make that a priority, correct?

- 1 A. Correct.
- 2 Q. And is it your understanding that he has not
3 made that a priority in this case?
- 4 A. Yes.
- 5 Q. And he has more or less failed to engage in
6 everything that your agency has requested him
7 to do in the last year that you've been the
8 worker, apart from visitation, correct?
- 9 A. Correct.
- 10 Q. Has he completed any substance abuse
11 treatment while you've been the caseworker?
- 12 A. He provided me documentation from Spring
13 River Wellness of a report, but he did
14 disclose that he was not using any
15 substances, so they didn't state that he did
16 not need any services.
- 17 Q. And would your agency qualify that as a
18 successful treatment if he reports that he
19 does not need services to the agency where
20 he's supposed to be getting services?
- 21 A. We would not count that as successful.
- 22 Q. Do you think that - strike that. Have you
23 asked him to complete hair follicles or UAs
24 while you've been the caseworker?
- 25 A. Yes.

- 1 Q. Tell me about when and the results of those
2 requests.
- 3 A. So I have sent Matthew for several different
4 hair follicles at Hassle Free in Joplin, and
5 I do send those for Wednesdays as those are
6 the days that he can make it to Joplin for
7 visits with his children, and I have no shows
8 for every single hair follicle that I have
9 sent him to.
- 10 Q. So you're setting him up on Wednesdays while
11 he's in town seeing his children, correct?
- 12 A. Correct.
- 13 Q. Trying to make it as easy as possible for him
14 to take these tests requested of your agency,
15 correct?
- 16 A. Correct.
- 17 Q. And you've worked with the provider - who was
18 that?
- 19 A. Hassle Free.
- 20 Q. And Hassle Free has scheduled these, I would
21 say at or near the time of visitation,
22 correct?
- 23 A. They are open as late as 4:30.
- 24 Q. And so what time would he normally be having
25 his visitation? Do you know?

- 1 A. Around 5:00.
- 2 Q. And so he would be able to go to Hassle Free
3 prior to the visit in order to then have his
4 visits with his kids, correct?
- 5 A. Correct.
- 6 Q. And so he's not showed up for any testing
7 while you've been the caseworker, correct?
- 8 A. Correct.
- 9 Q. And you are aware of history that he has in
10 previous cases where his children were
11 removed and those cases involved
12 methamphetamine use, correct?
- 13 A. Correct.
- 14 Q. So do you believe it's a reasonable request
15 for your agency, the team, and the Court to
16 require him to complete testing in order to
17 determine it would be safe to reunify with
18 his child?
- 19 A. Correct.
- 20 Q. Is it true that he's currently \$1,624.00,
21 approximately, in arrears in child support?
- 22 A. Yes.
- 23 Q. And true that he did in the last thirteen
24 months make some payments towards that child
25 support order?

1 A. Yes.

2 Q. In fact, there was a large payment in March
3 of '23, this year, for \$3,654.00, which you
4 believe to be a tax refund or intercept, is
5 that true?

6 A. Yes.

7 Q. What voluntary payments has he made in child
8 support in the last thirteen months?

9 A. He made \$20.00 on June 22nd of 2022, \$40.00
10 on November 1st of 2022, \$60.00 on November
11 16th of 2022, and then the last one is \$30.00
12 on December 9th of 2022.

13 Q. He is also at visits providing some in kind
14 items, food, toys, those sorts of things for
15 the children, is that true?

16 A. Yes.

17 Q. And he does show up consistently each week
18 for his visits, correct?

19 A. Yes.

20 Q. Apart from the minimal financial
21 contributions and the weekly visits is he
22 doing anything else to reunify with his
23 child?

24 A. He provided me with documentation of a four
25 hour parenting class certificate.

- 1 Q. Anything else?
- 2 A. No.
- 3 Q. Why does he believe that he does not need to
- 4 work, if you know, his social service plan?
- 5 A. He has stated several different times that he
- 6 is a nonoffending parent.
- 7 Q. And have you and the team and the Court
- 8 explained to him that that is not how he's
- 9 viewed in this case?
- 10 A. Yes.
- 11 Q. And what's his response?
- 12 A. He typically just responds saying that we did
- 13 not have any jurisdiction on removing his
- 14 child from him, as his child was residing
- 15 with the birth mother and not him.
- 16 Q. Is it true at the time of removal the
- 17 juvenile office, well, at or near the time,
- 18 did file an amended petition which included
- 19 allegations against the father, correct?
- 20 A. Correct.
- 21 Q. And those allegations included that he had
- 22 current possession charges as well as a
- 23 history, is that true?
- 24 A. Yes.
- 25 Q. And that criminal history or abuse and

1 neglect history was later proven by clear and
2 convincing evidence to be true at a juvenile
3 hearing, correct?

4 A. Correct.

5 Q. And do you believe that the father
6 understands that?

7 A. Yes.

8 Q. Do you know if he had counsel at the time?

9 A. I do not know if he had counsel at the time.

10 Q. Concerning putative father for Trace, Jack
11 Seitz, is it true that while you've been the
12 caseworker he has not engaged at all in the
13 case plan to reunify with the child?

14 A. Yes.

15 Q. True that he's stated that he wants his
16 rights terminated with respect to Chase -
17 Trace?

18 A. Yes.

19 Q. And true that he's not offered any support or
20 contact to Trace?

21 A. Yes.

22 Q. True that while you've been the caseworker no
23 father has come forward asserting paternity
24 or acting as the father for Trace attempting
25 to create a parent/child relationship or

1 provide him with support?

2 A. Yes.

3 Q. Do you believe it's in the best interest of
4 both Trace and Kody that the parental rights
5 of the birth mother and the fathers be
6 terminated pursuant to grounds pled in our
7 petition?

8 A. Yes.

9 Q. And that's been the case goal for each child
10 for some time now, correct?

11 A. Correct.

12 Q. Case goal was changed to termination of
13 parental rights and adoption in April 2022,
14 correct?

15 A. Yes.

16 Q. And do you believe that your agency has made
17 reasonable efforts to assist the parents in
18 reunifying with their children?

19 A. Yes.

20 Q. And those services provided by your agency,
21 those were free of charge, correct?

22 A. Yes.

23 Q. Had the parents been willing to participate
24 in them, correct?

25 A. Yes.

1 Q. Children are placed in a pre-adoptive home,
2 is that true?

3 A. Yes.

4 Q. And do you believe that the children, as
5 they've been there for well over a year, are
6 bonded with their placement?

7 A. Yes.

8 Q. Are they doing well and thriving in the
9 placement's home?

10 A. Yes, they are.

11 Q. And do you believe at this time that -
12 concerning the birth mother, do you believe
13 that there are healthy attachments for either
14 child to the birth mother?

15 A. No.

16 Q. And do you believe that there - regarding
17 Kody, do you believe that he has any healthy
18 attachments to Matthew Goodman?

19 A. Kody recognizes that Matthew is his dad, and
20 he enjoys going to his visits.

21 Q. And do you believe that he's also happy to
22 leave with placement after the visit?

23 A. Yes.

24 Q. Because he is only seeing Matthew for an hour
25 once a week, is that true?

1 A. Yes.

2 Q. And the rest of the time he's with placement,
3 correct?

4 A. Yes.

5 Q. Concerning the putative father for Trace, or
6 the unknown father, true that Trace would
7 have no emotional ties to either father,
8 correct?

9 A. No.

10 Q. Do you believe that there would be additional
11 services that your agency could offer any of
12 the parents of this case in order to bring
13 about a lasting parental adjustment enabling
14 a return of the children to the parent within
15 ascertainable period of time?

16 A. No.

17 Q. Children have been in care for two and a half
18 years, correct?

19 A. Correct.

20 Q. And you and your agency, as well as the team,
21 have attempted to work with the parents in
22 order to assist them in reunifying, but to
23 date have been unsuccessful in doing so,
24 correct?

25 A. Correct.

1 Q. You authored investigation and social studies
2 pursuant to Court order, is that true?

3 A. Yes.

4 Q. I am marking these documents as Exhibit #21.
5 Will you identify Exhibits - well, we'll do
6 #21A and #21B for the Court.

7 A. #21A is investigation and social study for
8 Trace Alton, and Exhibit #21B is the
9 investigation and social study of Kody
10 Goodman.

11 Q. And do those look to be true and accurate
12 copies of the ISS's that you authored?

13 A. Yes.

14 Q. Those were pursuant to Court order, correct?

15 A. Yes.

16 Q. And does the information contained therein
17 remain true to this day?

18 A. Yes.

19 BY MS. DRAKE: Your Honor, I ask that
20 Exhibits #21A and #21B be admitted.

21 BY THE COURT: Any objections?

22 BY MS. ROWDEN: None.

23 BY MS. GOULD: No.

24 BY MS. KADERLY: None.

25 BY MR. ROBERTSON: No objection, Your

1 Honor.

2 BY THE COURT: And, I'm sorry, did
3 you ask that those be admitted for --

4 BY MS. DRAKE: Yes.

5 BY THE COURT: -- a specific purpose
6 or -

7 BY MS. DRAKE: Yes. For determining
8 the best interest of the children.

9 BY THE COURT: Exhibits #21A and #21B
10 will be admitted.

11 BY MS. DRAKE: Thank you. Your
12 Honor, I have no further questions.

13 BY THE COURT: Let's go off record
14 for a minute and have some discussions about
15 scheduling.

16 (OFF THE RECORD)

17 (LUNCH BREAK TAKEN)

18 (BACK ON THE RECORD)

19 BY THE COURT: We are back on record
20 in 22AO-JU00287 in the matter of Trace Alton,
21 and 22AO-JU00288 in the matter of Kody
22 Goodman. Ms. Riley was on the stand. I
23 believe, Ms. Drake, you had tendered the
24 witness, is that correct?

25 BY MS. DRAKE: That's correct.

1 BY THE COURT: All right. I will
2 remind you you are still under oath. And,
3 Mr. Robertson.

4 CROSS-EXAMINATION BY MR. ROBERTSON:

5 Q. Have you specifically asked my client to do
6 anything for these kids?

7 A. Yes.

8 Q. What's that?

9 A. Provide a hair follicle, engage in substance
10 abuse treatment, safe, stable, appropriate
11 housing.

12 Q. Has he done those things?

13 A. No.

14 Q. You have no - does the father have any record
15 of that occurring, any of those things?

16 A. We have a substance abuse treatment
17 assessment from Spring River where he
18 admitted that he was not using. It was half
19 a sheet, so we didn't even get the full
20 assessment.

21 Q. Okay. You said it was half a sheet. Explain
22 that. I mean, -

23 A. It was just one page. There was additional
24 pages.

25 Q. How many pages is it supposed to be?

- 1 A. I'm unsure. The only reason I know is
2 because the bottom of it wasn't a complete -
3 like there was - it didn't end properly.
4 Like you could tell that there was
5 information missing.
- 6 Q. Okay. Are you suggesting that it was cut off
7 in a paragraph?
- 8 A. Yeah, --
- 9 Q. For lack of a better term.
- 10 A. Yeah, I believe that there were additional
11 pages that needed to be like presented with
12 it.
- 13 Q. Okay. Do you know how many pages?
- 14 A. No.
- 15 Q. Have you gotten one before in another case?
- 16 A. No.
- 17 Q. You've never received one of these documents?
- 18 A. Not from Spring River.
- 19 Q. Okay. From anywhere?
- 20 A. Yeah.
- 21 Q. How many pages is it normally?
- 22 A. Typically anywhere between three and four, if
23 parents are completely honest about their --
- 24 Q. Okay.
- 25 A. -- substance abuse.

- 1 Q. So one page would be abnormal?
- 2 A. Correct.
- 3 Q. And there's nothing else you asked him to do?
- 4 A. We've asked for consistent employment, which
- 5 he did provide his 2022 tax return and some
- 6 different checks.
- 7 Q. When you say different, can you describe or
- 8 make that more clear for me?
- 9 A. Yeah. It was just different various checks
- 10 from different months. I believe there was
- 11 two from this month and maybe one from last
- 12 month.
- 13 Q. Sequential?
- 14 A. No, they were from just different odd jobs
- 15 that he had done.
- 16 Q. Okay. And do you consider his employment an
- 17 odd job?
- 18 A. Yes.
- 19 Q. His employment fixing up homes is an odd job?
- 20 A. Well, the checks I had gotten were for metal
- 21 restoration, so that's why I'm calling it an
- 22 odd job, is just because there's been
- 23 different employments.
- 24 Q. Okay. What were those employments?
- 25 A. So one, he did claim he was flipping homes,

1 but he also has been claiming that he's done
2 metal restoration.

3 Q. Okay. And do you know what his businesses
4 are?

5 A. No. He's self-employed.

6 Q. Self-employed. Do you know what his
7 businesses are as a self-employed person?

8 A. Flipping homes and metal restoration is what
9 has been provided to me.

10 Q. So the check on metal restoration would be
11 consistent with that statement?

12 A. Yeah.

13 Q. Okay. And you say flipping homes. Can you
14 describe that further?

15 A. He claims he will renovate the insides of
16 homes. Find them, renovate them, and then
17 sell them.

18 Q. Okay. Thank you. You've been to his home,
19 I'm assuming?

20 A. No.

21 Q. Okay. Are you aware of his homes?

22 A. Sorry. Can you repeat that?

23 Q. Are you aware of his homes?

24 A. Yes. He has reported a home in Carthage and
25 Baxter Springs.

1 Q. What's the address of the home in Carthage?

2 A. I don't have the address for his home in
3 Carthage. He reported he rents it out, that
4 he doesn't live there.

5 BY MR. ROBERTSON: No other
6 questions, Your Honor.

7 BY THE COURT: Ms. Rowden.

8 BY MS. ROWDEN: Thank you.

9 CROSS-EXAMINATION BY MS. ROWDEN:

10 Q. Shania, do you remember when you became the
11 caseworker on this matter?

12 A. Yeah. I believe it was April of 2021, in
13 that area, maybe April 17th.

14 Q. Okay. And while you were caseworker is when
15 mom was released from jail, correct?

16 A. Correct.

17 Q. And I believe we discussed that she had been
18 in there for six months. Does that sound
19 accurate?

20 A. Yes.

21 Q. Had she been in jail at any other points
22 prior to that time?

23 A. I --

24 Q. During the case.

25 A. Prior to the six month stint?

1 Q. Yes.

2 A. I believe she had short stays of
3 incarceration.

4 Q. And so she's made progress since being
5 released from that six month stint, correct?

6 A. Correct.

7 Q. She has moved into an appropriate place,
8 correct?

9 A. Correct.

10 Q. She has increased her support system as
11 requested, correct?

12 A. Yes.

13 Q. She has been able to demonstrate periods of
14 sobriety, correct?

15 A. Yes.

16 Q. And do you have any explanation or knowledge
17 as to why her hair follicle in June would
18 come back negative for all substances when
19 her UAs in May did not?

20 BY MS. DRAKE: Objection. I don't
21 know if the caseworker is qualified to answer
22 that question. I think that the Court would
23 need a qualified expert to give their
24 knowledge and expertise as to how that
25 testing works and why one result would be

1 different from the other in such a short
2 amount of time.

3 BY THE COURT: To the extent that she
4 has knowledge and is able to answer that
5 question, I will overrule the objection. If
6 she doesn't feel that she has sufficient
7 knowledge to answer that question, she can
8 certainly respond in that way.

9 BY MS. DRAKE: Thank you.

10 A. No, I don't know why it would.

11 Q. (By Ms. Rowden) Did you contact the testing
12 facilities for any kind of verification of
13 the positive tests?

14 A. No, I did not.

15 Q. And so you're not aware as to whether those
16 tests had further validation or testing
17 beyond the initial result, correct?

18 A. Can you repeat that?

19 Q. Sure. Let me rephrase it. So to your
20 knowledge were those positive tests in May
21 ever retested or validated or anything at
22 all?

23 A. Two of them were lab tested, one was in-house
24 tested.

25 Q. And did those - was that the first line of

1 testing on them or was that a second testing
2 on them?

3 A. I believe it was the first line of testing
4 for all three.

5 Q. So none of the three were retested?

6 A. Not to my knowledge.

7 Q. And you previously stated, and correct me if
8 I misquote you, that mom had a period of
9 sobriety sufficient to refer for a
10 psychological evaluation in December, is that
11 correct?

12 A. Correct.

13 Q. And you stated that the referral was sent in
14 December?

15 A. I don't - I don't know exactly when the
16 referral was sent. I just provided the
17 information to College Skyline and had
18 Dawndee make that appointment.

19 Q. Okay. Looking at the court report that you
20 had submitted dated April 5th on its face,
21 and on the - towards the end it states that
22 she had been referred to College Skyline for
23 psychological evaluation with referral being
24 sent April 3rd of '23.

25 A. Okay. Then I must have sent it then.

- 1 Q. Okay. And to your knowledge mom has attended
2 that, correct?
- 3 A. Correct.
- 4 Q. Okay. We just don't have it back yet?
- 5 A. No.
- 6 Q. Okay. And mom has been involved in groups
7 and counseling at Ozark Center, correct?
- 8 A. Correct.
- 9 Q. Are you aware as to what services she has
10 been involved in there?
- 11 A. Yes.
- 12 Q. What services are those?
- 13 A. She has an individual therapist. She has
14 case management, medication management. Here
15 recently, after her positives for
16 methamphetamine in May, she has been
17 attending mandatory groups, and I believe
18 even visited the detox unit post positive
19 tests.
- 20 Q. Throughout your time in this matter has mom
21 had a medication change?
- 22 A. I believe so.
- 23 Q. And was that - was that medication change
24 significant for her change in involvement and
25 behavior?

1 A. I don't know.

2 Q. Are you aware as to when that medication
3 change occurred?

4 A. I don't have that off the top of my head, no.

5 Q. Okay. Earlier when you were asked about the
6 home that she's in being a stable environment
7 you kind of hesitated before finally saying
8 no. What was your hesitation?

9 A. My hesitation was that I don't feel that with
10 Charlotte's hesitancy on providing childcare
11 should Dawndee at work, my concern is that
12 with the hesitancy the appropriate
13 supervision that the children would receive,
14 knowing her hesitancy and being that daycare
15 provider for Dawndee.

16 Q. Okay. So, but the housing in general is
17 appropriate?

18 A. Yes.

19 Q. Okay. And how many times have you visited
20 mom there?

21 A. In that home, I have visited four.

22 Q. And you said that you're not sure like - you
23 know, she could be kicked out at any time.
24 Are you aware as to whether she is on any
25 lease?

1 A. I am not aware if she's on the lease.

2 Q. Okay. And how - and we talked about visits a
3 little bit ago with the prior witness, but
4 how often were you having communication with
5 the therapist of Trace in order to assess
6 whether it was appropriate to have visits
7 again with mom?

8 A. I have reached out to her several different
9 times, and she was difficult to get a hold
10 of, but once I did it - I believe - I don't
11 know off the top of my head, but it was - it
12 took me about three months to get a hold of
13 her.

14 Q. To the therapist?

15 A. To the therapist to get a phone call back
16 from her, but once talking with her she
17 talked about how Trace was diagnosed with
18 PTSD and how he was just still having a
19 difficult time working on how to essentially
20 deescalate himself and his coping skills when
21 he would get upset or scared, you know,
22 feeling those really strong emotions, and
23 that's what they were continuing to work on.
24 They could not start the trauma narrative
25 until he was able to display those in his

1 daily life.

2 Q. And was he attending his therapy
3 consistently?

4 A. Yeah. There were - like due to weather or
5 sickness in the family and different things,
6 but there were not any missed appointments
7 just because.

8 Q. Okay. And since mom's release after the six
9 month period of jail how has your contact
10 been with her?

11 A. So when she was released from jail I was able
12 to meet with her in September in the office,
13 December in the office, and that was in 2022.
14 January in the office. And then once her
15 housing became stable I met with her in
16 March, April, May, June of this year in her
17 house. So since jail, seven times - seven
18 months.

19 Q. So she's been consistent in communication
20 with you?

21 A. Yes. This past year she has.

22 Q. And has she been fairly compliant in meeting
23 the requests that you have made to her?

24 A. Yes.

25 Q. Nothing further.

1 BY THE COURT: Ms. Kaderly.

2 BY MS. KADERLY: I don't have any
3 questions, Your Honor.

4 BY THE COURT: Ms. Gould.

5 BY MS. GOULD: I don't have any
6 questions. Thank you.

7 BY THE COURT: Any redirect, Ms.
8 Drake?

9 BY MS. DRAKE: Just briefly, Your
10 Honor.

11 BY THE COURT: Sure.

12 REDIRECT-EXAMINATION BY MS. DRAKE:

13 Q. Shania, you were asked about the mother's
14 house, and you said that it was appropriate.
15 To be clear, the house is appropriate, is
16 that true?

17 A. Yes.

18 Q. However, you would have concerns, I think you
19 testified earlier, as to mother's stability
20 in that home due to her not being on the
21 lease, the friend being able to kick her out
22 any time, correct?

23 A. Yes.

24 Q. Okay. And so while the house is physically
25 appropriate, you would have concerns as to

1 whether or not that's long-term stability for
2 the children, correct?

3 A. Correct.

4 Q. And would you also be concerned about the
5 safety of the home due to mother's most
6 recent methamphetamine use a month ago?

7 A. Yes.

8 Q. And to be clear, there were questions about
9 the drug tests that were admitted into
10 evidence. I'm handing you what I have marked
11 as Exhibits #18 and #19. I'll provide those
12 to other counsel as well. Will you identify
13 those documents for the Court?

14 A. Exhibit #18 is a progress note report from
15 Ozark Center by Dawndee's community support
16 specialist, dated June 7th of 2023. And
17 Exhibit #19 is one of her group logs from New
18 Directions, dated 5-30 of 2023.

19 Q. And these documents you have kept in records
20 in your case file, is that true?

21 A. Yes.

22 Q. And they were actually filed in the
23 underlying juvenile case as well, correct?

24 A. Correct.

25 Q. To which the Court has already taken judicial

1 notice of. And is it true that in both of
2 these documents, which one is from Ozark -
3 well, they're both from Ozark Center, but
4 they occurred approximately, one, Exhibit
5 #19, on May 30th of 2023, and then Exhibit
6 #18 occurred - the service date was June 7th
7 of 2023, correct?

8 A. Correct.

9 Q. And in both documents does the mother admit
10 to her relapse of methamphetamine use?

11 A. Yes.

12 Q. And so while you were asked earlier about the
13 tests you may not know whether or not the -
14 you know the accuracy of the testing, you do
15 know that she tested positive, and you know
16 that she has admitted to using
17 methamphetamines, correct?

18 A. Yes.

19 BY MS. DRAKE: Your Honor, I ask that
20 Exhibits #18 and #19 be admitted.

21 BY THE COURT: Any objections?

22 BY MS. GOULD: None.

23 BY MR. ROBERTSON: No.

24 BY MS. KADERLY: None.

25 BY MS. ROWDEN: No objection.

1 BY THE COURT: Exhibit #18 and
2 Exhibit #19 will be admitted.

3 BY MS. DRAKE: May I approach?

4 BY THE COURT: You may. Thank you.

5 Q. (By Ms. Drake) And is mother currently on
6 probation?

7 A. Yes.

8 Q. Due to the charges that she acquired when the
9 children were removed?

10 A. Yes.

11 Q. And, again, that was endangering the welfare
12 of the children, correct?

13 A. Correct.

14 Q. And true that due to her relapse she received
15 a violation of her probation?

16 A. Yes.

17 Q. And do you know what came of that violation
18 for probation?

19 A. Yes. She had to start attending groups
20 through Ozark Center, watch eight to ten
21 hours - eight to ten hours of videos. She
22 has two hours of community service where that
23 is supervised where she cleans the jail
24 cells.

25 Q. And although the mother has had periods of

1 sobriety, what is your agency's primary
2 concern with mother right now? Why is it
3 dangerous to return these children to her?

4 A. With her continued drug use, and mental
5 health, along with - I mean, she has housing
6 right now, but it's been four months.
7 Relapse a month ago. She's engaged in
8 treatment right now, but it was Court
9 ordered. She has shown that she could be
10 engaged before, but it was for three months
11 until she quit attending those appointments.

12 Q. And she's had Court ordered services in these
13 alternative care cases for two and a half
14 years, correct?

15 A. Correct.

16 Q. And so while she is engaged in treatment
17 court now as a condition of her probation, do
18 you have any idea whether or not she can
19 maintain sobriety?

20 A. She has shown a pattern of not being able to
21 obtain sobriety.

22 BY MS. DRAKE: Judge, I don't have
23 anything further. Thank you.

24 BY THE COURT: Any questions in
25 response to those, Mr. Robertson?

1 BY MR. ROBERTSON: No, Your Honor.

2 BY THE COURT: Ms. Rowden?

3 BY MS. ROWDEN: Just a quick one.

4 RECROSS-EXAMINATION BY MS. ROWDEN:

5 Q. Mom was honest with you and open that she had
6 relapsed, correct?

7 A. Once I asked her about the test. I visited
8 with her on 6-12 and she did not disclose the
9 positive test until probation and parole
10 informed me of it.

11 Q. Okay. Nothing further.

12 BY THE COURT: Ms. Kaderly?

13 BY MS. KADERLY: Nothing.

14 BY THE COURT: Ms. Gould?

15 BY MS. GOULD: Nothing.

16 BY MS. DRAKE: Petitioners rest for
17 the purposes of Count I of their petition.

18 BY THE COURT: All right.

19 Independent evidence then. Mr. Robertson?

20 BY MR. ROBERTSON: I want to call my
21 client.

22 BY THE COURT: Okay. Ms. Riley, I'm
23 going to have you take a step - let's see.
24 I'm trying to figure out the best way to do
25 this.

1 BY MS. KADERLY: We could pull up
2 another chair or -

3 BY THE COURT: Yeah. Well, or I just
4 need Ms. Riley to swing around somewhere. As
5 a witness I'm going to put you on the witness
6 stand right there by that microphone, and so
7 -

8 BY MS. KADERLY: If you want to --

9 BY THE COURT: Yeah, you're welcome
10 to just scoot back.

11 BY MS. KADERLY: Whatever you are
12 most comfortable doing.

13 BY THE COURT: I just learned a long
14 time ago that these seats are too hard if
15 you're right next to somebody to remember
16 that you're on the witness stand. All right,
17 sir, would you raise your right hand for me,
18 please.

19 (WITNESS SWORN)

20 BY THE COURT: You can lower your
21 hand. Mr. Robertson.

22 BY MR. ROBERTSON: Thank you, Judge.

23 MATTHEW GOODMAN

24 Having been first duly sworn and examined,
25 testified as follows:

1 DIRECT EXAMINATION BY MR. ROBERTSON:

2 Q. Sir, can you tell me your name for the
3 record?

4 A. Matthew Preston Goodman.

5 Q. And your relationship to this case?

6 A. I'm the father of Kody Goodman.

7 Q. When is the last time you saw Kody?

8 A. Wednesday.

9 Q. And is that normal? A normal Wednesday
10 visit?

11 A. Yes. I see him - I've seen him every
12 Wednesday for the past year and a half, two
13 years. I've been consistent. Never missed a
14 visit, so -

15 Q. Okay. Tell me about what's gone on in this
16 case in your circumstance.

17 A. Well, I mean, I do believe that I'm a
18 nonoffending parent in this case. I've got -
19 I'm not really sure why I got brought into
20 the case as far as being on the opposite
21 side.

22 Q. How were you brought into the case?

23 A. I actually heard about the case, my uncle
24 called me and had told me that he heard that
25 my son was taken into foster care. I had

1 made that known to Ms. Wolf during another
2 visit for admissions in prior charges. I was
3 actually seeing her on that case --

4 Q. For clarification, Ms. Wolf is a former
5 attorney, is that correct?

6 A. Yes.

7 Q. Not in this case, but was a criminal
8 attorney, is that correct?

9 A. No. Under the underlying case of the TPR.

10 Q. Okay.

11 A. Juvenile case.

12 Q. Thank you.

13 A. And I asked Ms. Miller if she would - if she
14 could find out, and she was concerned because
15 I had called all the places that I thought he
16 might be, trying to find out where he was at,
17 and she picked up the phone, made a phone
18 call and called all the places that I had
19 already called and found out that he was
20 actually there, even though they had told me
21 that he wasn't, and she set up a visit
22 between me and my son at that point.

23 Q. How did the visit go?

24 A. It went good. I mean, other than the fact
25 that I - I tried to - I tried to get my son,

1 I was told that I couldn't leave with him,
2 but, I mean, other than that, the visit went
3 well.

4 Q. You filed motions in this case on your own?

5 A. Yes, I have. I filed a motion for family
6 access. I filed a motion to reconsider. And
7 I also filed a motion to intervene according
8 to Supreme Court Rule 24.

9 Q. Did you get a ruling on those motions?

10 A. I was never told whether or not the judge
11 even ruled on any of those motions.

12 Q. Have there been allegations of Trace, who is
13 another child related to your child, doing
14 something to your child?

15 A. Yes. Actually, I wasn't informed by the
16 caseworkers. They kind of kept that under
17 wraps, but I was informed by a parent aide
18 that maybe I needed to talk to Trace because
19 nobody else was getting through to him, which
20 I personally felt that that was kind of
21 messed up to ask of me, being the situation,
22 but considering that both the boys, I have
23 always looked at them the same and treated
24 them the same, I told her that I would have a
25 conversation with him. It was a hard

1 conversation to have with him because having
2 mixed feelings because it was my boy that he
3 supposedly done these things to. I spoke to
4 Trace and I spoke to my son and I asked them
5 both if I treated them any differently, if I
6 treated one differently than the other. They
7 both replied no. And I told them that that
8 was because they were both my boys and I love
9 them both equally. I told them that it was
10 my job to protect them. I also explained to
11 Trace that I was sorry that I wasn't there to
12 protect him. I then asked Trace if he knew
13 what I was talking about, and he said he did.
14 I told him that the last thing that he
15 wanted, that I wanted, that Kody wanted was
16 for me to have to protect Kody against him,
17 or vice versa, for me to have to protect
18 Trace from Kody, and asked them both if they
19 understood it. And I also told him that if
20 he is one of my sons he's a Goodman and we
21 don't do those kinds of sick things, we're
22 not - that's not who we are, and I asked him
23 if he understood that. He told me he did
24 understand. And then I asked my son if he
25 understood that if anything like that were to

1 ever happen again that he was to say
2 something to somebody, and my son told me
3 that he understood as well.

4 Q. Have you ensured or helped these kids get to
5 a counselor?

6 A. I'm sorry?

7 Q. Have you helped these kids get to a counselor
8 at any point in this case?

9 A. I haven't been made aware of any counselor,
10 other than I have been told that Trace sees a
11 counselor, and I know that they mentioned
12 during testimony earlier that they were
13 waiting for Trace to exhibit examples of how
14 he could handle when a rough situation comes
15 up or when his emotions get too high, and
16 he's repeatedly shown demonstration that he
17 can do that during visits with me by walking
18 off, bouncing a ball, and kind of ignoring
19 the situation for the moment, and then coming
20 back and addressing the situation afterwards.
21 And that's - that's common with little
22 things. It's just I notice that whenever I
23 was talking to Kody he kind of gets a little
24 frustrated because he wants my attention, and
25 I try not to pay a whole lot of attention to

1 that because I don't want to get into it, but
2 at the same time, I also notice that he feels
3 that way, and I also notice how he handles
4 it, and I think that the boy is doing a lot
5 better, and he is showing that in his daily
6 life. I know he is in my visits weekly.

7 Q. Okay. How long have you had visits with the
8 children on Wednesdays?

9 A. Since the beginning of this case. Every
10 Wednesday.

11 Q. Every Wednesday and every other weekend, is
12 that correct, or --

13 A. No.

14 Q. -- not since -

15 A. Since they got taken into care. Prior to
16 that I had custody arrangement that the Court
17 ordered that was every other weekend and
18 every Wednesday I had them overnight.

19 Q. Okay.

20 A. And that was prior to them taking
21 jurisdiction. And at 3 years old it was
22 supposed to go to fifty/fifty physical and
23 legal custody to where I had them every other
24 week and she had them every other week, but
25 we never got to that point.

1 Q. Okay. Have you ever been served in this
2 case?

3 A. I did get served I think through - well, I
4 got served on the TPR. I did receive a paper
5 in the DFS office, I believe it was.

6 Q. Okay. Are you at all related to the adopting
7 party?

8 A. No.

9 Q. Is your previous girlfriend at all related to
10 the adopting party?

11 A. Yes.

12 Q. How is that?

13 A. I believe that is her aunt.

14 BY MR. ROBERTSON: I don't have any
15 other questions, Your Honor.

16 BY THE COURT: Let's go Ms. Drake.

17 BY MS. DRAKE: Thank you.

18 CROSS-EXAMINATION BY MS. DRAKE:

19 Q. Matthew, you said that you believe that
20 you're a nonoffending parent. Is it true
21 that you would show up in court and discuss
22 that and were told the opposite?

23 A. I was never told that in court, no. I was
24 told that through emails. Several times I
25 was told and several times I disagreed, that

1 I didn't understand how, and no explanation
2 was ever given how or I was considered an
3 offending parent, other than saying that I
4 had a criminal background, and I received
5 letters stating the exact reasons why. They
6 said I had a criminal background, which was
7 nothing more than a Casenet search.

8 Q. And you understand that Kody has been in care
9 for two and a half years now, correct?

10 A. I do understand that, yes.

11 Q. And do you understand that you were given a
12 list of services on what's known as a social
13 service plan in order to work to reunify with
14 him?

15 A. No, ma'am. I was never given a list. I was
16 told several different things, several
17 different ways, but never was I given a list.
18 And whenever I asked for a list to be given
19 to my attorney, I was told several times they
20 did not contact my attorney.

21 Q. But to be clear, you were told on multiple
22 occasions what was expected of you in order
23 to safely reunify, correct?

24 A. I've done everything in my - what I was able
25 to interpret from the plan. I was told I had

1 done.

2 Q. But you were in this courtroom when the two
3 caseworkers testified that you haven't,
4 correct?

5 A. I was in here, yes, whenever they testified
6 that I did not.

7 Q. So they testified that you have not provided
8 verification of treatment, a successful
9 completion of any treatment court, correct?

10 A. I am not sure what the question is. That
11 they testified to that?

12 Q. Yes.

13 A. Yes, they did testify to that, I believe.

14 Q. Why do you believe that they would say that
15 if that wasn't true?

16 A. Well, I believe they - they think that my
17 attorney at the time that I had actually
18 conveyed that information to me, which was
19 not ever relayed to me, and I was left to
20 interpret that on my own without the
21 interpretation of counsel.

22 Q. You were asked to complete multiple drug
23 tests throughout the case, correct?

24 A. No. I was asked here recently to do a hair
25 follicle, although one was Court ordered when

1 I didn't have an attorney at the beginning of
2 the case, but I just now started receiving
3 emails about three or four months ago about
4 this hair follicle, and almost every time I
5 was out of state working, and they knew that
6 because I also did video visits with my sons
7 on those weekends - or weeks, on those
8 Wednesdays. And almost every one of those
9 Wednesdays I believe were the Wednesdays that
10 I was told to come and do a hair follicle as
11 well.

12 Q. So you admit that you were told whenever you
13 were having Wednesday visits that you could
14 participate in drug testing, correct?

15 A. I admit that I was told during an email
16 twenty-four hours in advance while I was in
17 Illinois and also in Louisiana, and that it
18 was unplausible for me to come or drive that
19 far for a hair follicle --

20 Q. Well, you were coming for a visit.

21 A. No, I was not. I was doing them over the
22 phone on chat.

23 Q. So every visit you've had with the children
24 has been --

25 A. No, not every visit. Some of the visits when

1 I was working over the road were done through
2 Skype, and almost every one of those visits
3 that I done through Skype were during the
4 same time that they asked me to come do the
5 hair follicle.

6 Q. But some visits were here in person, correct?

7 A. Yes, they were.

8 Q. And so at some visits you could have done
9 testing while you were here in town, correct?

10 A. But they schedule them twenty-four hours in
11 advance, and I was never given the
12 opportunity to get more than twenty-four
13 hours in advance to come take the hair
14 follicle, although I was asked during the
15 deposition - or I did ask Ms. Emmons, I
16 believe, if I could take a hair follicle
17 test, and if she wanted to change the case
18 goal back to reunification, where she stated,
19 no, she would not be willing to do that no
20 matter what, therefore, it would not matter.

21 Q. Well, these tests that Children's Division
22 send you to for hair follicle or UAs, you
23 understand that those have to be random
24 tests, they're not ones that are scheduled or
25 something that they're going to tell you too

1 far in advance of what's occurring, that way
2 they get an accurate test, correct?

3 A. I understand that a hair follicle goes back
4 ninety days, so regardless, they're going to
5 get an accurate test. I mean, two days
6 versus one day is not going to make no
7 difference on a hair follicle, from my
8 understanding.

9 Q. You've been having one hour a week visits
10 since Kody has been in care, correct?

11 A. Yes. Although I have repeatedly asked for an
12 increase in time.

13 Q. Did you ever file a motion with the Court --

14 A. I never had - I would ask my attorney to
15 several times in emails, although I never got
16 a response back, and have not been able to
17 contact her, and I'm not even sure if I have
18 an attorney representing me in that case now.

19 Q. And you are still receiving the one hour a
20 week supervised --

21 A. Yes, ma'am.

22 Q. Nothing has ever increased in the two and a
23 half years, correct?

24 A. No.

25 Q. If this case were to continue would you be

1 willing to engage in services now?

2 A. I was willing to engage in services then, I
3 was just never given a clear plan on what to
4 engage in exactly. My own best guess and did
5 what I possibly could to engage in what I
6 thought would make the difference in the
7 Court's opinion and decision.

8 BY MS. DRAKE: I have no further
9 questions, Judge.

10 BY THE COURT: Ms. Kaderly.

11 BY MS. KADERLY: I don't have any
12 questions.

13 BY THE COURT: Ms. Gould.

14 BY MS. GOULD: I don't have any
15 questions.

16 BY THE COURT: Ms. Rowden.

17 BY MS. ROWDEN: I don't have any
18 questions. Thank you.

19 BY THE COURT: Any redirect?

20 BY MR. ROBERTSON: No, Your Honor.

21 BY THE COURT: Sir, you can come back
22 over and have a seat next to your attorney.
23 Any additional evidence then on behalf of
24 natural father?

25 BY MR. ROBERTSON: No, Your Honor.

1 BY THE COURT: Ms. Rowden.

2 BY MS. ROWDEN: Yes, Your Honor. I
3 would call Dawndee Alton.

4 BY THE COURT: Okay. Ms. Alton, I'll
5 have you have a seat in the witness chair
6 over there. And if you would raise your
7 right hand for me.

8 (WITNES SWORN)

9 BY THE COURT: You can lower your
10 hand.

11 BY THE WITNESS: Thank you.

12 BY THE COURT: Ms. Rowden.

13 DAWNDEE ALTON

14 Having been first duly sworn and examined,
15 testified as follows:

16 DIRECT EXAMINATION BY MS. ROWDEN:

17 Q. Okay. Before we get started, I need you to
18 speak up, slowly, and no uh-huhs or huh-uhs,
19 so yes or no, if you get asked a yes or no
20 question, because she's trying to take down
21 everything you say, okay?

22 A. Okay.

23 Q. Can you tell us your name?

24 A. Dawndee Renee Alton.

25 Q. And, Dawndee, your two children, Trace and

1 Kody, have been in care for about two and a
2 half years, correct?

3 A. Yes.

4 Q. And you've heard the testimony of the
5 caseworker, now supervisor, and the current
6 caseworker, is that correct?

7 A. Yes.

8 Q. I asked a previous witness if you've had any
9 med changes throughout this case. Do you
10 recall that?

11 A. Yes.

12 Q. Do you recall having a medication change
13 during --

14 A. Yes.

15 Q. -- this case? Can you tell us what that
16 change was?

17 A. Previous to my positive test results they
18 increased my meds, except we forgot that one
19 of the antihistamines that they usually give
20 me counteracts it, bringing it to more
21 balanced, was not added, and I dropped in it.
22 Somewhere along the lines I made bad choices
23 of coming across my previous belongings and
24 having something that I should not have had.
25 And I was honest with my court - of the

1 appearance of court, and they had me do a
2 follow-up with Ozark, as well as my doctor,
3 and he went ahead and kept me at the
4 increased, but adding my Vistoral at that
5 time and increasing it as well.

6 Q. And since that change do you feel better?

7 A. Yeah.

8 Q. Do you feel like you've been able to better
9 meet the goals of this case or the underlying
10 case?

11 A. Yeah. There's still (inaudible) --

12 BY THE COURT: I'm sorry. I need you
13 to start that sentence over and talk louder.

14 A. We're still in the process of reviewing my
15 meds, as well as they are on call for any
16 changes, because it's a day to day since it
17 builds up in my system, and it's just
18 strongly being reviewed.

19 Q. (By Ms. Rowden) And you have housing now.
20 Can you tell us about the situation as to how
21 you've come to live there?

22 A. One of my best friends, I went to go and talk
23 to him because I was having some troubles,
24 and I thought maybe I could have my oldest
25 daughter pick up my other three and we could

1 meet there and have our visits. And I showed
2 up, my friend was in a wheelchair for months,
3 and I told him that I would be back, and this
4 all occurred with the boys being put into
5 protective custody, and I didn't want to pile
6 that on him until I got everything taken care
7 of, because it was immediately the charges,
8 the boys gone, so on and so forth. Anyway,
9 so that Christmas time my friend Mitch called
10 me on Facebook and he said whatever it takes,
11 just get here, and we need you, and I told
12 him I needed him, and so that's where I am.

13 Q. And would you consider that friend - and his
14 mother who lives in the home, correct?

15 A. Yeah.

16 Q. As a part of your support network?

17 A. Absolutely.

18 Q. Who else would you consider to be a part of
19 your support network?

20 A. My treatment team, my PO. I just gained two
21 recovery - the treatment court, Ozark, the
22 caseworker. I would like to say my
23 caseworker here for the boys, she has helped
24 me out with a lot of advice for things that I
25 need to get accomplished. It's grown a lot

1 since day one.

2 Q. Have - can you tell us what groups you're
3 involved in, whether that be treatment or We
4 Do Recover, things like that.

5 A. Through Ozark I go on, what is it? Not
6 Skype. The video -

7 Q. Zoom?

8 A. Yeah. Zoom. I go on Zoom. I try to stick
9 to Mondays because I don't have a lot
10 scheduled Mondays. So I did two meetings
11 yesterday. I was trying to go for three.
12 And I did one at We Do Recover Sunday, and on
13 lunch I went and checked in over there.
14 Today. There's not really any Zoom meetings
15 on Tuesdays, so I'll pick up another one
16 tomorrow before I have court for treatment
17 court.

18 Q. And your treatment court, how did you come to
19 be in treatment court? Is that something
20 that has to do with a criminal case that you
21 had or -

22 A. That's the charges that I received off of
23 this.

24 Q. Okay.

25 A. I took a deal. They dropped off two of the

1 charges and kept one and terms that I would
2 complete these tasks and requirements and the
3 graduation of this accomplishment through
4 treatment court and hopefully receive the
5 boys back.

6 Q. And how far into the treatment court are you?
7 Like are there certain stages?

8 A. The judge has them really far along, but I
9 don't feel that I'm very far along. I
10 haven't started my MRT step study, which I
11 guess there's several steps I need to go
12 through that, and then I'm only at phase two,
13 which I just got to. It's been over a month,
14 so I'm probably closer to three now. And I
15 have a long ways to go.

16 Q. Do you feel like treatment court has helped
17 you progress in the case with your boys as
18 well?

19 A. Yeah.

20 Q. What are your requirements for treatment
21 court?

22 A. I have to see my PO, my caseworker, my
23 counselor, meet with my doctor as scheduled
24 or as needed, stay out of trouble, and attend
25 my daily call ins for my UAs as well as meet

1 the requirements to attending for my UAs, and
2 provide clean UAs.

3 Q. And have you been complying with those terms?

4 A. Since my last dirty UA, yes.

5 Q. And your relapse was just a one time event,
6 correct?

7 A. Yes.

8 Q. And have you been employed throughout the
9 case with your boys being in care?

10 A. After incarceration I went to - I was
11 released into my mom's care, and right across
12 the road was Flex-O-Laters, and these
13 requirements, I moved to a sober living
14 house, and still wasn't able to provide
15 income for myself, so we transferred with my
16 PO for me to move in with the care of
17 Charlotte Kessinger. (ph.) I help her, she
18 helps me, and I'm able to meet the
19 requirements for drug treatment, my
20 appointments, and be cared for as well. Now
21 to meet the requirements of my extra class,
22 like my tickets, child support, and getting
23 me where I'm putting some money aside for
24 housing and my car, I've taken on a job a
25 couple days a week for Denney's.

1 Q. And you just got started with Denney's,
2 correct?

3 A. Yeah. Thursday.

4 Q. And that's your orientation?

5 A. Yeah.

6 Q. So is it fair to say that you understand what
7 - or you have understood along the lines of
8 this case what was expected of you?

9 A. Yes.

10 Q. And do you believe that you have been doing
11 what's been expected of you?

12 A. (Nodding head)

13 BY THE COURT: I'm sorry. You
14 nodded. Can you --

15 BY THE WITNESS: Yes.

16 BY THE COURT: Thank you.

17 BY THE WITNESS: I'm sorry.

18 BY THE COURT: That's okay.

19 Q. (By Ms. Rowden) Is there anything that
20 you've done that we have failed to bring up
21 or address today?

22 A. No. Besides I wonder what my boys would
23 want.

24 Q. Nothing further.

25 BY THE COURT: Ms. Drake.

1 CROSS-EXAMINATION BY MS. DRAKE:

2 Q. If you can answer this, why did you choose to
3 use methamphetamines in May?

4 A. I wasn't looking for it. I got my belongings
5 and didn't even think about it when I first
6 vaped, and then after I was thinking, oh, no,
7 this might have some residue in it, then I
8 had already had it in my system, I used
9 again, and I was honest about it. The
10 biggest problem that the Courts had wasn't
11 using, they said that often they expect it,
12 and I'm - I can't wrap my head around that,
13 but they said that my biggest punishment was
14 because I didn't tell on myself immediately,
15 I didn't call. Kind of like I said, it's
16 like hotlining, you don't take the
17 opportunities and use them, then you don't
18 find yourself at fault in the beginning that
19 you're on meth, so -

20 Q. Since your most recent use was approximately
21 a month ago, how do you feel this Court can
22 be ensured that you will maintain sobriety at
23 this point?

24 A. Keep continuing what I've been doing and hope
25 that you trust me.

1 Q. And you realize that your children have been
2 in care for two and a half years?

3 A. Yes.

4 Q. And at some point usually at the year mark
5 the Court makes a decision to look at the
6 case and possibly modify the children's case
7 goal from reunification to something else,
8 right?

9 A. Yes.

10 Q. And so, and that year mark when the Court did
11 take up - actually, I think it was about a
12 year and a half into the children being in
13 care the Court took up the Juvenile Office's
14 motion to modify, and you were present at
15 that hearing, correct?

16 A. Yes.

17 Q. And so you understood at that time the Court
18 changed the children's case goal to
19 termination of parental rights and adoption,
20 right?

21 A. Yes.

22 Q. And since then Children's Division has
23 continued to offer you services, correct?

24 A. Uh-huh.

25 Q. And --

1 BY THE COURT: I'm sorry. Is that a
2 yes?

3 BY THE WITNESS: Yes.

4 BY THE COURT: Thank you.

5 Q. (By Ms. Drake) And those services went for
6 another year, correct?

7 A. Yes.

8 Q. And then we had the recent relapse in May. I
9 guess my question to you, Dawndee, is how
10 long do you think your children should wait
11 for permanency?

12 A. I've been trying to work this program and the
13 whole nine yards. I - it is a process. I
14 missed court, so that revoked the bond. I
15 spent six months waiting for an evaluation,
16 five weeks in between for the evaluation,
17 then I had to wait for a judge weeks later.
18 It's been a process, just as - not every case
19 is the same, and it doesn't take the same
20 length of time. It's been jumping through
21 hoops and I've worked very, very hard to get
22 where I am, and I will work very hard to get
23 where we need to be.

24 BY MS. DRAKE: I have no further
25 questions, Judge.

1 BY THE COURT: Ms. Kaderly.

2 BY MS. KADERLY: I don't have any
3 questions. Thank you.

4 BY THE COURT: Ms. Gould.

5 BY MS. GOULD: I have no questions.

6 BY THE COURT: Mr. Robertson.

7 BY MR. ROBERTSON: Just one moment,
8 Your Honor. No questions, Your Honor.

9 BY THE COURT: Any redirect?

10 BY MS. ROWDEN: No. Thank you.

11 BY THE COURT: All right. You may
12 have a seat next to your attorney again. Any
13 additional evidence then on behalf of natural
14 mother?

15 BY MS. ROWDEN: No. Thank you, Your
16 Honor.

17 BY THE COURT: Ms. Kaderly, any
18 independent evidence on behalf of the
19 Juvenile Office?

20 BY MS. KADERLY: No, Your Honor, we
21 do not.

22 BY THE COURT: Ms. Gould, any
23 independent evidence?

24 BY MS. GOULD: Nothing. No, Your
25 Honor.

1 BY THE COURT: Statement, Ms. Drake?

2 BY MS. DRAKE: Your Honor, I believe
3 that there is more than sufficient evidence.
4 I believe there is clear and convincing
5 evidence before the Court, grounds to
6 terminate the rights of all parents involving
7 these two minor children exist, and I believe
8 that there's more than sufficient evidence
9 and it's in the children's best interest that
10 their rights be terminated. The children
11 have been in care for more than two and a
12 half years. I believe that the testimony
13 today was that the birth parents failed to
14 rectify conditions which led to the removal
15 of the children two and a half years ago, and
16 that it still would be dangerous to return
17 the children today to any of the parents
18 involved. I believe that there's also
19 evidence of unfitness, and we have multiple
20 relapses, or stents of drug use by a birth
21 parent, and that continued use would affect
22 the children's ability to be in a stable and
23 permanent home. There's no evidence that
24 this Court today could predict in the
25 foreseeable future when the children could be

1 returned to a birth parent. So I do believe
2 based on those grounds, and then others pled
3 in our petition, that there is evidence to
4 find that the parental rights should be
5 terminated and that's in the best interest of
6 the children.

7 BY THE COURT: Thank you. Mr.
8 Robertson.

9 BY MR. ROBERTSON: Judge, we feel
10 like we would ask you not to terminate my
11 client's parental rights. I feel like he's
12 attempting to do everything he can. And that
13 would be it.

14 BY THE COURT: Ms. Rowden.

15 BY MS. ROWDEN: Your Honor, we just
16 ask that rights not be terminated today. Mom
17 has been working very hard to comply and has
18 checked off a lot of boxes, and just needs a
19 little more time to be able to show the Court
20 that she is suitable.

21 BY THE COURT: Ms. Kaderly.

22 BY MS. KADERLY: Thank you, Your
23 Honor. The Juvenile Office sought the change
24 in case goal to one of adoption because we're
25 required to look at permanency when we hit a

1 certain point. We hit that one year mark.
2 And I continue to believe that permanency is
3 necessary for these children. The thing that
4 gives me the greatest concern regarding mom
5 is we had three separate UAs taken in the
6 month of May that continued to be positive
7 for methamphetamine, which although I would
8 suggest to the Court that I, too, am not
9 surprised by that, I know mom says it's hard
10 to wrap her brain around the idea of that, we
11 kind of expect to see families - or
12 individuals relapse some, and that is true
13 because we also know that it's not easy to
14 stay away always from things that aren't good
15 for us. And so I'm not so much surprised by
16 that, but it feels like it kind of came -
17 it's come late in this process, which is what
18 gives me the real concern there. I don't
19 believe that father - I believe the evidence
20 bears out that dad has not cooperated with
21 the case plan, and has not cooperated with
22 documentation and evidence of his situation
23 that would allow us to consider him - the
24 Juvenile Office does not consider him to be a
25 nonoffending parent based on the statutory

1 definition. I do believe that there is
2 sufficient basis in front of this Court to
3 grant the termination of parental rights. I
4 don't say that very lightly in this case,
5 quite frankly, Your Honor, but I do believe
6 that it's there.

7 BY THE COURT: Thank you. Ms. Gould.

8 BY MS. GOULD: I would concur with
9 the statements and just add that at this
10 point I believe that it would be in the
11 children's best interest for the termination
12 to take place to allow them to be adopted.

13 BY THE COURT: Anything further from
14 any party then?

15 BY MS. KADERLY: No.

16 BY MR. ROBERTSON: No, Your Honor.

17 BY THE COURT: All right. The matter
18 will come under advisement for purposes of
19 the Court preparing findings of fact as
20 required by law. Ms. Drake, because it's
21 your petition I am going to order you to
22 prepare a proposed findings of fact and
23 conclusions of law. Those should be
24 delivered to the Court via Word format by
25 email with all opposing counsel copied. Do

1 you think ten days is sufficient with the
2 holiday, or would you like a little longer?

3 BY MS. DRAKE: Fourteen.

4 BY THE COURT: Okay. Let's do July
5 14th. That's actually a little longer, but,
6 again, with the holiday, it's effectively
7 fourteen days. All other counsel is invited,
8 but not ordered to prepare proposed findings
9 of fact and conclusions of law, and I would
10 ask that if you elect to prepare those you
11 would deliver those through the same medium.
12 In other words, in Word format, via email,
13 with all opposing counsel copied. Anything
14 further today then?

15 BY MS. KADERLY: No, Your Honor. Not
16 from the Juvenile Office.

17 BY THE COURT: Okay. We can be off
18 record. Thank you.

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21 (DEPOSITION CONCLUDED)

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REPORTER'S CERTIFICATE

STATE OF MISSOURI

ss.

COUNTY OF JASPER

I, SHARON K. ROGERS, Certified Court Reporter in the State of Missouri, do certify that the foregoing hearing was taken by me by steno-mask recording and afterwards transcribed, and is a true and correct transcription of the hearing held.

I further certify that I am not counsel, attorney, or relative of either party, or clerk, or stenographer of either party or of the attorney of either party, or otherwise interested in the event of this suit

___/s/ Sharon K. Rogers_____

SHARON K. ROGERS,CCR-650